CONSTITUTIONAL LAW,CYBER LAW, IP LAW AND PROFESSIONAL ETHICS · Unit_02 · Federal System Legislature, Executive and Judiciary

DRAFT — UC26CE121A · Unit_02 — Federal System Legislature, Executive and Judiciary · Complete Unit Master

Notes-first study master · source-cited lecture explanations and compact page takeaways

Hugging Face PESU_Materials source tree, official units.json catalogue, transcript sidecars, slide text/PDF/PPT sources and the selected First_Year_8enterprise archive; see the provenance datasets in the release ZIP. Generated 18 October 2026.

· How to use this pack

Read the edited lesson notes by topic. Evidence chips point to transcript intervals and slide pages. The complete source transcripts, page text, formula candidates, and image locators are preserved in sibling JSON datasets. Topics include the applicable parts: overview, key terms, formulas, figures, flowcharts, important points, worked examples, past-paper questions and a recap. IDs are shared with the separate documents: E = formula, G = graph, F = flowchart, W = worked example. Each ID is numbered by topic, so E4.2 is the second formula of topic 4.

Source text	Verbatim or OCR-derived text, kept separate from editorial notes.
Candidate	Automated topic/source association requiring manual confirmation.
Low ASR confidence	Transcript segment requires audio verification.
DRAFT	Human review remains incomplete.

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M1

Unit_02 · Federal System Legislature, Executive and Judiciary

1 UC26CE121A · Unit_02: Federal System Legislature, Executive and Judiciary

This unit master organizes source material for CONSTITUTIONAL LAW,CYBER LAW, IP LAW AND PROFESSIONAL ETHICS, Unit_02, officially titled Federal System Legislature, Executive and Judiciary. It includes 0 video transcripts and 11 source slide decks, with page-level text and rendered images where available. This draft preserves source wording and page order; it does not claim a complete human subject review or full audiovisual review. EV0000001

SHORT-NOTE RECAP

Unit map · UC26CE121A · Unit_02: Federal System Legislature, Executive and Judiciary

Official catalogue entry: UC26CE121A, Unit_02 (Federal System Legislature, Executive and Judiciary). Bucket folder present: yes. Videos: 0; slide decks: 11.

EV0000001

2 Source slide deck: The story of my experiments with truth by Mahatma Gandhi

Study focus: Source slide deck: The story of my experiments with truth by Mahatma Gandhi. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0000002 · EV0000003

SHORT-NOTE RECAP

Study notes · Source slide deck: The story of my experiments with truth by Mahatma Gandhi

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · Question bank based on 'The Story of My Experiments with Truth' by Mahatma

- 1. Who is the author of 'The Story of My Experiments with Truth'?
- 4. When was the first part of Gandhi's autobiography published?
- 5. What is the main theme of 'The Story of My Experiments with Truth'?

Slide 2 · c) Uttamchand Gandhi

- 9. In which year was Gandhi married to Kasturba?
- 10. How old was Gandhi when he got married?
- 12. What was the name of Gandhi's elder brother who helped him go to London?

Slide 3 · b) Laxmidas

- 13. Which of these vows did Gandhi's mother make him take before leaving for
- 14. Where did Gandhi first practice law in India?
- 16. What incident in South Africa sparked Gandhi's first act of civil disobedience?

Slide 4 · 18. What was the name of the first settlement Gandhi established in South

- 20. What was the name of Gandhi's autobiography in Gujarati?
- 21. Which of these was a fundamental principle for Gandhi?
- 23. When did Gandhi return to India from South Africa to begin his work there?

Slide 5 · d) 1930

- 26. Gandhi's experiment with which fruit led him to believe a diet of fruit alone
- 27. Which close friend from South Africa shared Gandhi's spiritual and dietary
- 28. What was the name of the weekly journal Gandhi started in South Africa?

Slide 6 · 29. What was the profession of Gandhi's father, Karamchand Gandhi?

- 30. Which book by Leo Tolstoy had a profound impact on Gandhi's philosophy?
- 31. What was the name of Gandhi's wife?
- 34. What was the name of the system of education Gandhi experimented with at

Slide 7 · c) Gurukul

- 35. Gandhi considered which legendary king his ideal of truthfulness?
- 36. What was the primary reason for Gandhi's initial failure as a lawyer in
- 37. Which event led Gandhi to clean his own toilet, breaking a social taboo?

Slide 8 · d) 1930

- 40. What was the first major public movement Gandhi led in India?

- 41. In which year did the Champaran Satyagraha take place?
- 43. Which event horrified Gandhi and made him suspend the Non-Cooperation

Slide 9 · b) Navjivan

- 46. Gandhi's famous 21-day fast in 1924 was for:
- 47. What was the name of the march Gandhi led in 1930 against the salt tax?
- 48. How many miles did the Dandi March cover approximately?

Slide 10 · 51. The Poona Pact was a result of Gandhi's fast and was signed with:

- 53. Who was Gandhi's personal secretary for many years?
- 55. What was Gandhi's slogan for the Quit India Movement?
- 56. Where was Gandhi imprisoned after the launch of the Quit India Movement?

Slide 11 · 57. Who passed away while imprisoned with Gandhi at the Aga Khan Palace in

- 58. On the day of independence, 15th August 1947, where was Gandhi?
- 59. When was Gandhi assassinated?
- 62. Gandhi's autobiography covers his life up until which year?

Slide 12 · d) 1948

- 65. Gandhi's concept of "Sarvodaya" means:
- 66. Which of these was a dietary experiment Gandhi tried?
- 67. Gandhi believed that the essence of religion could be found in:

Slide 13 · c) Jana Gana Mana

- 69. What was the name of Gandhi's youngest son?
- 70. Gandhi's philosophy was influenced by which Western thinker's concept of
- 71. What was the name of the leader from the North-West Frontier Province

Slide 14 · 74. The spinning wheel, or Charkha, became a symbol of:

- 76. The title "Mahatma" means:
- 77. Gandhi's first major fast in India was in 1918 for the mill workers of:
- c) The Discovery of India

Slide 15 · 80. Gandhi's concept of "Trusteeship" related to:

- 81. Gandhi considered which language as a unifying force for India?
- 82. The Jallianwala Bagh Massacre in 1919 led Gandhi to return which medal to
- 85. Gandhi's impact on the Indian National Congress was to transform it into:

Slide 16 · d) A parliamentary body

- 87. Gandhi's method of conflict resolution was based on:
- 88. The Simon Commission was boycotted by Indians because:

- 89. Which of these was one of Gandhi's eleven vows for ashram life?

Slide 17 · c) A vow of silence

- 92. Gandhi's approach to modern medicine was generally:
- 93. The "Rowlatt Act" against which Gandhi protested, allowed the British to:
- 97. The "August Offer" of 1940 was rejected by Gandhi because it:

Slide 18 · b) Did not promise immediate independence

- Answer: Did not promise immediate independence
- b) Did not guarantee full independence
- Answer: Did not guarantee full independence

Slide 19 · 103. What was the name of the law firm where Gandhi worked in South Africa?

- 104. Gandhi's legal career in South Africa primarily involved cases for the:
- 106. Gandhi's "Black Act" protest in South Africa was against:
- 107. The "Great March" of 1913 in South Africa was for the rights of:

Slide 20 · 109. Gandhi's term of imprisonment in South Africa in 1908 was for:

- 110. Who was the British suffragist and theosophist who influenced Gandhi in
- 111. Gandhi's famous statement, "An eye for an eye makes the whole world
- 114. The "Champaran Agrarian Act" was a result of Gandhi's Satyagraha and

Slide 21 · c) Salt producers

- 116. Gandhi's relationship with Jawaharlal Nehru was that of a:
- 118. Gandhi's autobiography was first serialized in which journal?
- 120. For Gandhi, the means were as important as the:

Slide 22 · b) Ends

- 121. Gandhi's philosophy was rooted in the belief that all religions:
- 122. Gandhi's term for self-rule or independence was:
- 125. Gandhi's famous letter to Adolf Hitler was written to:

Slide 23 · 126. Gandhi's vision for education emphasized:

- 127. The "Harijan" newspaper was started by Gandhi to:
- 129. Gandhi's "Talisman" was a message about considering the welfare of the:
- 130. The book "Gandhi: An Autobiography" is a translation of:

Slide 24 · c) Yerwada Jail

- 133. The "Aga Khan Palace" was donated to India by the Aga Khan in memory of:
- 135. Gandhi's autobiography ends with the year 1920 because he believed:
- d) The later part was not important

Slide 25 · 137. Gandhi's non-violent protest in South Africa was known by what specific

- 138. What significant honor did Gandhi receive from the British Empire in 1915,
- 139. Which Indian state was the starting point of Gandhi's Dandi March?
- 140. What was the original profession Gandhi's family intended for him before

EV0000002 · EV0000003 · EV0000004 · +72 source units in pack.json

3 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0000077 · EV0000078

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Part V of the Indian constitution deals about union Executive.
- Union Executive Consists of The President, Vice-President, Council of Ministers headed by the Prime Minister and Attorney General of India.
- President is the head of the Indian states.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- Article 52 provides that there shall be a President of India and
- Article 53 provides that the executive powers of the Union shall be vested in the President of India and shall be exercised either directly or through officers subordinate to him in accordance with the Constitution.
- the elected members of both Houses of Parliament; and

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- The nominated members of the parliament & legislative assemblies and members of the legislative council cannot vote in the president election.
- The electoral college consists of the elected members of both Houses of Parliament and the state Legislative Assemblies. [including National capital territory of Delhi and Puducherry]

- Election to be held before the expiry of the tenure of the President in office (article 62 (1)). If the office falls vacant by death, resignation, removal or otherwise, election must be conducted within 6 months of the date of the vacancy. Once elected the President serves for 5 years.

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- The President shall hold office for a term of five years
- the President may, by writing under his hand addressed to the Vice-President, resign his office;
- the President may, for violation of the Constitution, be removed from office by impeachment.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- (b) Should be of not less than 35 years of age;
- (c) Should be qualified for elections as a member of the House of people; [i.e he must be registered as a voter in an parliamentary constituency,]
- (d) Should not hold any office of profit under the Government of India or any state Government or any local authority subject to the control of any of the said Government;

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- The President is eligible to be re-elected without any restrictions.
- But a person shall not be deemed to hold office of profit who is the president or the vice-president of the Union or the Governor of any state or the Minister of the Union or of any state.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- Condition of President's Office: Article 59
- If he is a member of either House of Parliament or a member of a House of the Legislature of any State, he shall be deemed to vacate his seat in that House on the date of entering into his office as President.
- Official residence, emoluments, and allowances of President

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- He shall be also entitled to emoluments, allowances, and privileges determined by Parliament.
- The emoluments and allowances of the President cannot be diminished or reduced during his term of office.
- Apart from all these conditions and rules, the President of India is also entitled to certain allowances and privileges, as he is the first citizen of the country. The President of India is entitled to rent-free accommodation, allowances, and privileges by law.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- The salary of the President has undergone several changes since independence. Some of these changes were: In 1951, the President of India used to get a salary of Rs. 10,000 and 15000 rupees as an allowance.
- In 1985, the President of India used to get a salary of Rs. 15,000 and 30000 rupees as an allowance.
- Rashtrapati Bhavan is the President's official residence, including reception halls, guest rooms, and offices. It is the largest residence of any head of state in the world.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- Article – 60: Oath or affirmation by the President
- According to Article 60, before entering upon his office, the president has to take an oath or an affirmation in the presence of the Chief Justice of India or, in his absence, the senior-most Judge of the Supreme Court available, an oath or affirmation in the following form, that is to say—
- —I, A.B., do swear in the name of God that I will faithfully execute the office solemnly affirm of President (or discharge the functions of the President) of India and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and wellbeing of the people of India.".

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- A resolution with the proposal to prefer such charges must be signed by at least one-fourth of the total members of the house and moved after giving at least 14 days advance notice. The resolution also needs to be passed by at least two-thirds majority of the house.
- When the resolution is passed by one of the Houses, the other House must investigate the charges. The President has been granted the right to be present or to be represented in such investigations.
- When the House investigating the charges passes the resolution by a two-thirds majority and declares the charges as sustaining, it results in removing the President from his office from the date of passing of the resolution

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 62 - Time of holding the election on expiry of the term and filling casual vacancies:
- Article 62 provides for the filling up of the vacancy to the office of the President. It defines the terms of office of the person filling the casual vacancy as well as the time of holding elections to fill the vacancy.
- An election to fill the vacancies, occurring due to the death, resignation or impeachment of the President, must be done as soon as possible. The elections, in any case, must be conducted within a time period of six months from the date of occurrence of the vacancy.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- The new person elected to the office of the President will be subject to all the provisions of Article 56 and will hold his office for a five-year term from the date of entering into the office.

Slide 15 · Constitutional Law, Cyber Law and Professional Ethics

- Privileges of the President: Article 361
- As President, He will enjoy the degree of immunity. Under Article 361, the President is protected from being answerable to any court for:
- The president shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise of those powers and duties. However, the conduct of the president may be brought under review by any court, tribunal or body appointed or designed by either houses of parliament for the investigation of the charge in impeachment proceedings. Thus the immunity afforded to the president will not restrict the right of any person to bring suit against the government of India.

Slide 16 · Constitutional Law, Cyber Law and Professional Ethics

- (a) a notice writing has been given to the president
- (b) 2 months have passed after the service of such notice and
- (c) the notice states the nature of proceeding, the cause of action, the name, residence and description of the party taking the proceedings and the relief claimed.

Slide 17 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 of the Indian Constitution states that all the executive powers of the Union will be vested in the President of India. President is allowed to exercise his executive powers through officers subordinate to him, directly or indirectly, in consonance to the provisions of the Constitution.
- Appointment of the high authorities of the Constitution like the Prime Minister and the Council of Ministers;
- Right of being informed about all the national affairs;

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- Appointment of the judges of the constitutional courts(Supreme Court and High Courts);
- Appointment of the state Governors, the Attorney General, the Comptroller, and Auditor General, the Chief Commissioner and members of the Election Commission of India;
- Administration of Union territories and appointment of the Chief Commissioners and Lieutenant Governor of the Centrally Administered Areas;

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 also states that the President shall be the Supreme Commander of all the Armed Forces of the Union of India. It also states that no specific provisions can reduce the scope of this general principle.
- As the Supreme Commander of the Armed Forces of the Union, President has powers regarding:
- Appointment of all the officers, including the appointment of the chiefs of the forces;

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- The President forms the Indian diplomacy and helps the nation to maintain cordial relationships with countries across the globe.
- All the Ambassadors and high commissioners in foreign nations are his representatives;
- Prior to ratification by Parliament, the treaties and agreements with other nations, are negotiated by the President.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

- During the budget session, the President is the first to address the Parliament;
- The President is empowered to summon a joint session in order to break the deadlock in the legislation process between the two Houses of the Parliament;
- President sanction is mandatory in cases of provisions relating to:

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Legislative provisions relating to fundamental rights of the citizens of India require the President's consent;
- President's consent is necessary for all the bills passed by the Parliament to become a law;
- President is empowered to promulgate ordinances when the Parliament is not in session;

Slide 23 · Constitutional Law, Cyber Law and Professional Ethics

- President receives reports of the Finance Commission and acts on its report.
- The Contingency Funds of India are at the disposal of the President.
- He exercises the power of grant of pardons and reprieves of punishments;

Slide 24 · Constitutional Law, Cyber Law and Professional Ethics

- Article 123 talks about the presidential powers to promulgate ordinances. An ordinance can be promulgated if:
- The ordinance which is promulgated by the President will have the same effect as that of an act or law of the Parliament.
- It shall be presented before both the Houses of Parliament for passing when it comes to the session;

Slide 25 · Constitutional Law, Cyber Law and Professional Ethics

- The ordinance may also expire if the resolutions disapproving it are passed by both the Houses of Parliament;
- It can be withdrawn at any time by the President;
- The ordinance must be in consonance to the Constitution of India else it shall be declared void.

Slide 26 · Constitutional Law, Cyber Law and Professional Ethics

- Article 72, provides for the provisions relating to the pardoning powers of the President. President can grant pardons, reprieves, respites, or remissions of punishments or remit suspend or commute the sentence given to a person by the court in the following cases:

- When the sentence is granted through a court-martial;
- When the sentence or punishment is given for offence of violation of any law relating to matters that fall in the ambit of Union's executive powers;

Slide 27 · Constitutional Law, Cyber Law and Professional Ethics

- A pardon completely absolves the offender from all sentences and punishments and disqualifications and places him in the same position as if he had never committed the offence.
- Respite means awarding a lesser punishment on some special grounds e.g., the pregnancy of a woman offender.
- Remission means reduction of the amount of sentence without changing its character, e.g. a sentence of one year may be remitted to 6 months.

Slide 28 · Constitutional Law, Cyber Law and Professional Ethics

- Pardoning power of the President: Article 72
- Commutation means exchange of one thing for another. It means substitution of one form of punishment for another of a lighter character, eg for rigorous imprisonment to simple imprisonment.

Slide 29 · Constitutional Law, Cyber Law and Professional Ethics

- Article 352 of the Constitution of India grants President, three kinds of emergency powers as well:
- When a National Emergency is declared in case of external aggression or internal armed rebellion, the President holds the powers to declare a state of emergency. Thus the President's rule gets established in the country. However, the prime minister and the Council of Ministers must recommend such an emergency;
- When there exists a constitutional or law and order breakdown situation in a state, the President may declare a state of emergency in such cases. The state would then come under Governor's rule;

Slide 30 · Constitutional Law, Cyber Law and Professional Ethics

- Emergency power of the President - 352
- Whenever the financial stability of the nation or any country is seriously affected, the President has the right to intervene and direct the state to check and maintain public expenditure.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- He acts as the President of India in case of death removal or resignation of the President of India.
- Even if the President is unable to exercise his duties due to illness, absence or any other cause, the Vice-President can officiate any duties of the President.
- During such tenures, the Vice-President is eligible to salaries, allowances that are payable to the President and ceases to be the Chairman of the Rajya Sabha

Slide 32 · Constitutional Law, Cyber Law and Professional Ethics

- The Parliament enacted the President (Discharge of Functions) Act 1969 by virtue of powers vested in the Parliament under article 70. In the absence of the President and the Vice-President the Chief Justice of India or the senior most Supreme court judge shall act as President till the new President takes office.
- The Vice President (Article 63): Article 63 talks about the vice president of India.
- There are some important functions and duties to be performed by the Vice-President of India. Article 64 and Article 65 of the Indian constitution talks about the following functions:

Slide 33 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice President casts his vote in case of a tie in Rajya Sabha;
- He protects the rights and privileges of the members of the Rajya Sabha;
- The Vice-President shall perform the functions of President, in cases where the President is not able to perform his functions due to absence or illness etc until the President resumes his duty;

Slide 34 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice-President shall act as President, If the vacancy is created for the post of President due to his resignation, removal, and death or otherwise until a new President is elected;
- The period between the Vice-President acting as the President and the election of a new President can be extended for a maximum period of six months.

Slide 35 · Constitutional Law, Cyber Law and Professional Ethics

- He should not be member of either house of the parliament
- Should not hold any office of profit under Central Government, State Government, local or other authority. [Art.66(4)]
- The candidate for the post of VP must be proposed by 20 voters and must be seconded by 20 voters.

Slide 36 · Constitutional Law, Cyber Law and Professional Ethics

- Electoral College[members of both houses of parliament] of all MP's in accordance with the system of proportional representation by means of single transferable vote and voting at such election shall be secret ballot.
- If the election is declared as void, then whatever that was done by him is sustained.
- If the seat falls vacant, election is to be conducted Immediately. [Article 68(2)]

Slide 37 · Constitutional Law, Cyber Law and Professional Ethics

- He cannot be an MP or MLA, in case he is elected as Vice president, it is deemed that the seat to the Legislative body is vacated. [Article 66(2)]
- Resignation to the President. [Resignation of President- to Vice President who shall be bound to inform the Speaker of Lok Sabha]

- Removal – Resolution of the Rajya Sabha passed by absolute Majority of total membership and agreed to by the Lok Sabha by simple majority. Prior notice of 14 days to be served. No inquiry is required for removal of Vice-President.

Slide 38 · Constitutional Law, Cyber Law and Professional Ethics

- (1) There shall be a Council of Ministers with the Prime Minister at the head to aid and advice the President who shall, in the exercise of his functions, act in accordance with such advice:
- Provided that the President may request the Council of Minsters to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.
- (2) The question whether, any, and if so what, advice was tendered by Ministers to the President shall not be inquired into in any court.

Slide 39 · Constitutional Law, Cyber Law and Professional Ethics

- There should be a Council of Ministers to aid and advise the president;
- The Council of Ministers must have a Prime Minister at the head to aid and advise the President;
- The President should exercise his functions and act in accordance with advice rendered by the Council of Ministers;

Slide 40 · Constitutional Law, Cyber Law and Professional Ethics

- The executive powers in India are exercised by the Council of Ministers. These ministers constitute ministries having cabinet minister, junior minister, etc. Before 2003, the size of ministries was not specified under any provision leading to a lot of chaos.
- After the 91st amendment Act of 2003 came into existence, it marked a ceiling limit to the size of the ministries. The amendment stated that the strength of the Council of Ministers cannot exceed more than 15% of the total number of members of the Lok sabha or relevant Legislative Assembly of the state.
- An exception was provided to the smaller states like Sikkim, Mizoram, and Goa, having a strength of lesser than 40 members in the legislative assemblies.

Slide 41 · Constitutional Law, Cyber Law and Professional Ethics

- Cabinets ministers: The cabinet ranks Minister are the head of their department. They attend the cabinet meeting as a matter of right however, a person can be appointed cabinet minister without a portfolio. The 44th constitution amendment act (1978) has confirmed constitution status on the cabinet minister.
- Minister of state: The minister of state is formally of cabinet Status and are paid the same salary as the cabinet minister and they hold independent charge of their department but they attend the cabinet meeting only when invited.
- Deputy ministers: The deputy ministers work under the minister of state and have no separate charge of a department. They get a lesser salary than the minister of state or

cabinet minister. They assist the Minister in charge of a department or minister and take no part in cabinet.

Slide 42 · Constitutional Law, Cyber Law and Professional Ethics

- Article 102(2) and Article 191(2) provides for Anti-Defection laws regarding the members of Lok Sabha. According to this law, a member of a House, belonging to any political party, shall be disqualified as a member of the House on the following basis
- If the person voluntarily gives up his/her membership of the political party to which he/she belongs; or
- If the person votes or abstains from voting in contrary to any direction issued by the political party or by any person or authority authorized to give directions.

Slide 43 · Constitutional Law, Cyber Law and Professional Ethics

- Disqualification on defection on the ground of split in a political party
- In either case, the prior permission of such political party, person or authority must be sought. The voting or abstention must be approved by the political party, person or authority within fifteen days from the date of voting or abstention.
- When a member of a House claims that he and any other members of his party have formed a group representing a faction emerging as a result of a split in his original political party. If such a group consists of one-third or more of the members of such a political party then the ministers cannot be disqualified under Anti-Defection laws.

Slide 44 · Constitutional Law, Cyber Law and Professional Ethics

- The Prime Minister shall be appointed by the President and other Ministers shall be appointed by the President on the advice of the Prime Minister.
- (1A) The total number of Ministers including the Prime Minister, in the Council of Ministers shall not exceed fifteen percent, of the total number of members of the House of the People.
- (1B) A member of either House of Parliament belonging to any political party who is disqualified for being a member of that House under paragraph 2 of the Tenth Schedule shall also be disqualified to be appointed as a Minister under clause (1) for duration of the period commencing from the date of his disqualification till the date on which the term of his office as such member would expire or where he contests any election to either House of Parliament before the expiry of such period, till the date on which he is declared elected whichever is earlier.

Slide 45 · Constitutional Law, Cyber Law and Professional Ethics

- (4) Before a Minister enters upon his office, the President shall administer to him the oaths of office and of secrecy according to the forms set out for the purpose in the Third Schedule.
- (5) A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister.
- (6) The salaries and allowances of Ministers shall be such as Parliament may from time-to-time by law determine and, until Parliament so determines, shall be as specified in the Second Schedule.

Slide 46 · Constitutional Law, Cyber Law and Professional Ethics

- Article 75(3) Our Constitution clearly states that "The Council of Ministers shall be collectively responsible to 'House of the People". It means that the Ministers are responsible to the Lok Sabha collectively.
- The essence of collective responsibility is that, 'the Minister must vote with the government, speak in defense of it if the Prime Minister insists, and he/she cannot afterwards reject criticism of his act, either in Parliament or in the constituencies, on the ground that he/she did not agree with the decision.' This responsibility has two implications.
- It means that every member of the Council of ministers accepts responsibility for each and every decision of the Cabinet. When a decision has been taken by the Cabinet, every Minister has to stand by it. If a Minister does not agree with the Cabinet decision, the only alternative left to him/her is to resign from the Council of Ministers.

Slide 47 · Constitutional Law, Cyber Law and Professional Ethics

- 2. Also the vote of no-confidence against the Prime Minister is a vote against the whole Council of Ministers. Similarly, adverse vote in the Lok Sabha on any government bill or budget implies lack of confidence in the entire Council of Ministers, not only the mover of the bill.
- Though the Ministers are collectively responsible to the Lok Sabha, they shall be individually responsible to the Head of the State i.e., President.
- However, since the President has to act on the advice of the Prime Minister, in practice, this power is exercised by the Prime Minister. The Prime Minister ask the Minister to resign.

Slide 48 · Constitutional Law, Cyber Law and Professional Ethics

- In order to be a Minister, a person has to be a member of either of the two Houses of Parliament.
- However, even if a person is not a member of any of the two Houses, he can become a Minister for a period of six months.
- Within six months the Minister has to get himself/herself elected to either House of Parliament, failing which he/she ceases to be a Minister.

Slide 49 · Constitutional Law, Cyber Law and Professional Ethics

- In our country, the Lok Sabha has a five-year term but it can be dissolved earlier. Article 83(2) of the Indian Constitution states that at the completion of five years term, from the starting date of Lok Sabha meetings, it can be dissolved. In such cases, an election is held to elect the new Members of Parliament.
- According to 85(b) The Lok Sabha can also be dissolved by the President on the advice of the Prime Minister before the expiry of its term.
- The President can also dissolve the Lok Sabha, if he feels that a viable government cannot be formed, after the resignation or fall of a regime, as the case may be.

Slide 50 · Constitutional Law, Cyber Law and Professional Ethics

- At first, the Prime Minister is appointed by the President and then the President appoints other ministers on the advice of the Prime Minister.
- The provision clearly states that any minister, who is not a member of either House of the Parliament, shall cease to be a minister after the period of six months from the date of his appointment.
- The non-member must get elected to either House of the Parliament in order to continue as a Minister of Lok Sabha.

Slide 51 · Constitutional Law, Cyber Law and Professional Ethics

- A convicted person cannot be appointed Chief Minister
- When the question arose whether a convicted can be appointed as Chief Minister or not.
- The issue was decided in the negative by the Supreme Court in the famous case known as Ms. J. Jayalalitha Case. It was held that any person who is convicted for a criminal offence and sentenced to imprisonment, for a period of two years, or more, cannot be appointed the Chief Minister of any State under Article 164(1) of the Indian Constitution.

Slide 52 · Constitutional Law, Cyber Law and Professional Ethics

- The state executive is made up of the Governor, Chief Minister, Council of Ministers, and Advocate-General of State.
- The Constitution of India by article 153, creates the office of the Governor. Thus each State shall have a Governor. The executive power of the State is vested in the Governor.
- Governor: constitutional - union government nominates Governor in each state.

Slide 53 · Constitutional Law, Cyber Law and Professional Ethics

- must be a citizen of India; and
- Must not belong to the state where he is appointed and
- Consult the Chief Minister of the state where to be appointed.

Slide 54 · Constitutional Law, Cyber Law and Professional Ethics

- The Governor must not be a member of either House of Parliament and House of the Legislature of any State.
- The salary and allowances of the Governor cannot be reduced during his term of office [article 158(4)].
- The Governor is required to take an oath or affirmation in the presence of the Chief Justice of the High Court or if he is not present, in the presence of the senior-most Judge of the High Court.[Article 159]

Slide 55 · Constitutional Law, Cyber Law and Professional Ethics

- How can the Governor be removed from his office? Tenure and removal (A.156)
- Subject to the foregoing provisions of this Article, a Governor shall hold office for a term of five years from the date on which he enters upon his office.
- Provided that a Governor shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

Slide 56 · State Executive- Governor's powers and functions

- He appoints the Chief Minister and on his advice the other Minister.
- He also appoints the Advocate- General of the State and the members of the State Public Service Commission.
- He also appoints the State Election Commission (Article 243K) and the State Finance Commission (Article 243K).

Slide 57 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- The leader of the political party that gets the majority of the votes - appointed as the Chief Minister of the state.
- In case, no party gets a majority - Governor gets to use his discretion and appoint a Chief Minister.

Slide 58 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- Criteria : 1) 25 years minimum age and
- The Chief Minister can reconstruct his Ministry and the right to demand the resignation of any of the ministers under him.

Slide 59 · Leader of the House- Makes all the announcements concerning the new or amended policies.

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Aids and Advises the Governor- The decisions of the council of ministers are communicated to the governor by the Chief Minister.

Slide 60 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 61 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.

- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 62 · Maximum size of Ministers

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- The new clause (1A) puts a maximum limit of number of Ministers to be appointed to the Council of Ministers. It provides that the total number of Ministers, including the Chief Minister in the Council of Ministers in a State shall not exceed 15 percent of the total number of members of the Legislative Assembly of that State provided that the number of Ministers, including the Chief Minister in a State, shall not be less than 12 for smaller States. In those States where the total number of Ministers is more than 15% at the time of the commencement of the 91st Amendment Act, 2003 it shall be reduced to 15 percent with 6 months from the date on which the President notifies the date for application of the amendment.

Slide 63 · Disqualification on ground of defection

- The new clause (1B) provides that where the 1/3 members of the original political party defect from the party their membership of the legislature will automatically come to an end. Such a member cannot be appointed as a Minister.
- In general, the relation between the Governor and his Ministers is the same as that between the President and his Ministers, with this important difference that while the Constitution does not empower the President to exercise any function it authorises the Governor to exercise some function 'in his discretion'.
- Article 163 says that there shall be a Council of Ministers with the Chief Minister as the head to aid and advice the Governor. The exercise of his functions, except insofar as he is by or under the Constitution required to exercise his functions on his discretion.

Slide 64 · In the following circumstances the Governor will be called upon to exercise his discretion

- Appointment of the Chief Minister,
- the dismissing of a Minister,
- advising the President for the proclamation of an emergency under article 356 of the Constitution.

Slide 65 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- To Aid and Advice the Governor: The Chief Minister is the link between the Cabinet and the Governor. It is he who communicates to the Governor all decisions of the Council of Ministers. He has to furnish such information relating to the administration of the State as the Governor may call for.

- 2. The Chief Minister is at the Head of the Council of Ministers: As Head of the State Cabinet, the Chief Minister enjoys the following powers:

Slide 66 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- i) Formation of the Ministry: The other Ministers are appointed by the Governor on the advice of the Chief Minister. The Chief Minister has a free hand in preparing the list of his colleagues. The Governor may suggest the names of the persons to be included in the Ministry, but he cannot insist upon any person to be included in the Ministry. Assigning departments or portfolios to the Ministers is done by the Governor on the advice of the CM. The CM can allocate and reshuffles portfolios among ministers.

Slide 67 · The powers and functions of Chief Minister are as follows:

- Other than this the CM has the following important powers;
- The activities of all ministers are coordinated, guided and controlled by the chief minister.
- If the chief minister resigns that the government also collapses.

Slide 68 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Other than this the CM has the following important powers;
- 10. Member of the Inter State Council and the National Development Council both headed by the prime minister.

Slide 69 · Constitutional Law, Cyber Law and Professional Ethics

- Indian Parliament consists of Lok Sabha [The House of the People], Rajya Sabha[The council of States], and the President of India.
- At the state level, the legislature is composed of the Legislative Assembly [Vidhana Sabha-lower house] and Legislative Council [Vidhana Parishad- upper house] and the Governor of the State.
- Constitution of the Parliament : India has chosen the parliamentary form of government with the head of the state as an elected person. Therefore, it is a Parliamentary republic.

Slide 70 · Constitutional Law, Cyber Law and Professional Ethics

- Though the practice of Bicameralism is a practice that was followed in the UK, India chose to follow the pattern that was followed by the USA. In the UK the two houses are the House of Lords and the House of Commons in which the House of Lords is a body that represents the nobility (referred to as peerage) who contributed to the stability in the UK when there was a monarchy and subsequently. Peerages are either inherited or otherwise they are enjoyed for life. The House of Commons consists of elected representatives from territorial constituencies.

- In the USA, both the Senate and the House of Representatives consist of elected members only.
- The Parliament is constituted under article 79 to include the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha).

Slide 71 · Constitutional Law, Cyber Law and Professional Ethics

- According to Article 170, there should be a Legislative Assembly - can have at most 500 constituencies and at least 60 constituencies.
- These constituencies would be represented by the members who would be selected through the process of direct election.
- Article 171: The total members in the Legislative Council should not exceed one-third of the total members in the state Legislative Assembly. Elected from the district boards, municipalities and other local authorities which is specified by the Parliament according to law.

Slide 72 · Constitutional Law, Cyber Law and Professional Ethics

- Qualifications of Membership: Article 173:
- Must be a citizen of India.
- The member of the Legislative Assembly should be more than 25 years. For being a member of the Legislative Council one should be more than 30 years.

Slide 73 · Constitutional Law, Cyber Law and Professional Ethics

- Office of profit under the state or central government.
- Disqualified by the law of the Parliament.

Slide 74 · Constitutional Law, Cyber Law and Professional Ethics

- Image-only source page; see the visual page locator in `datasets/content-index.json`.

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4 Source slide deck: My India The India Eternal by Swami Vivekananda

Study focus: Source slide deck: My India The India Eternal by Swami Vivekananda. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0000299 · EV0000300

SHORT-NOTE RECAP

Study notes · Source slide deck: My India The India Eternal by Swami Vivekananda

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · Question bank based on "My India: The India Eternal" by Swami Vivekananda

- 1. What did Swami Vivekananda describe as the soul of India?
- 2. According to Vivekananda, which group holds the key to India's future?
- 5. What did Vivekananda believe was the root cause of India's decline?

Slide 2 · 6. Which phrase did Vivekananda use to awaken the masses?

- 8. How did Vivekananda describe India's spiritual contribution to the world?
- 10. Which Western country did Vivekananda visit to spread India's spiritual message?
- 11. What did Vivekananda believe was the best way to serve God?

Slide 3 · C. Serving humanity

- 12. What was Vivekananda's opinion on blind imitation of the West?
- 14. What did Vivekananda say about India's ancient civilization?
- B. Be proud of your heritage and serve the nation

Slide 4 · 17. What did Vivekananda emphasize as the foundation of national regeneration?

- 18. Which Indian figure did Vivekananda consider his spiritual master?
- 19. What did Vivekananda say about religious tolerance?
- 22. What did Vivekananda say about India's unity?

Slide 5 · C. It depends on political power

- 23. What was Vivekananda's view on temples and rituals?
- A. They are the only path to God
- 27. Which ancient Indian value did Vivekananda believe could unite the world?

Slide 6 · 28. What did Vivekananda say about India's villages?

- 31. Which Western thinker did Vivekananda admire for spiritual depth?
- 32. What did Vivekananda say about India's youth?
- 33. What did Vivekananda believe about India's ancient scriptures?

Slide 7 · C. They are symbolic myths

- D. They should be rewritten
- 34. Which emotion did Vivekananda say must be conquered for spiritual growth?
- 35. What was Vivekananda's view on service to the poor?

Slide 8 · 39. Which symbol did Vivekananda use to describe India's dormant power?

- 40. What did Vivekananda say about the role of women in India's future?
- 41. What did Vivekananda believe about India's spiritual message to the world?
- 44. Which Indian river did Vivekananda describe with reverence?

Slide 9 · C. Ganga

- 45. What did Vivekananda say about India's spiritual teachers?
- B. They are the true leaders of society
- 48. Which quality did Vivekananda say was most lacking in Indians during colonial rule?

Slide 10 · 50. What did Vivekananda say about strength?

- 51. What did Vivekananda say about superstition in Indian society?
- 53. What did Vivekananda believe about India's role in global civilization?
- 55. What did Vivekananda say about the importance of character in education?

Slide 11 · C. It is irrelevant in modern times

- 56. Which Indian epic did Vivekananda often reference to illustrate moral strength?
- 57. What did Vivekananda say about India's spiritual teachers and saints?
- 59. Which Indian value did Vivekananda say must be revived to restore national pride?

Slide 12 · 61. What did Vivekananda say about India's ancient universities like Nalanda?

- 62. What did Vivekananda say about the power of thought?
- 64. What did Vivekananda say about India's spiritual unity?
- 65. What did Vivekananda say about the role of monks in society?

Slide 13 · C. It should be avoided

- D. Action must be avoided
- D. Fear should be taught in schools
- C. It should be copied

Slide 14 · 72. What did Vivekananda say about the role of religion in public life?

- 73. What did Vivekananda say about the importance of faith in oneself?
- 74. What did Vivekananda say about India's spiritual teachers and their legacy?
- 75. What did Vivekananda say about the future of India?

Slide 15 · C. Wealth

- 78. What did Vivekananda say about the importance of faith in national progress?
- 79. Which Indian value did Vivekananda say was the key to universal brotherhood?
- 81. What did Vivekananda say about the importance of education for women?

Slide 16 · 83. What did Vivekananda say about India's ancient culture?

- 85. What did Vivekananda say about the importance of service?

- 86. What did Vivekananda say about India's youth and courage?
- 88. What did Vivekananda say about blind imitation of the West?

Slide 17 · C. It is a sign of intelligence

- 89. What did Vivekananda say about the importance of character?
- A. It is less important than success
- 90. What did Vivekananda say about India's spiritual mission?

Slide 18 · 94. What did Vivekananda say about strength and weakness?

- 95. What did Vivekananda say about the importance of self-reliance?
- 96. What did Vivekananda say about India's spiritual values?
- 99. What did Vivekananda say about India's spiritual teachers and saints?

Slide 19 · C. They must be forgotten

- D. They should be replaced by scientists
- 101. What personal tragedy made Vivekananda face poverty and hardship in his youth?
- 102. After Sri Ramakrishna's passing, where did his disciples stay and form their

Slide 20 · 105. What insight did he gain during meditation at Kanyakumari?

- 107. What was the central message of his Chicago address?
- 108. What was the audience's reaction to Vivekananda's opening words in Chicago?
- 109 Which organization did Swami Vivekananda establish after returning to India?

Slide 21 · 111. What is the motto of the Ramakrishna Mission?

- B) "Atmano mokshartham jagat hitaya cha" — for one's own salvation and for the welfare of
- 112. What type of work did Vivekananda encourage through the Mission?
- B) Founding of Ramakrishna Mission

Slide 22 · 117. What did Swami Vivekananda see at Kanyakumari that symbolized the suffering and

- 118. Swami Vivekananda's experience in Alwar taught him that:
- 119. In "My India: The India Eternal," what does Vivekananda describe as the main
- 120. Swami Vivekananda's final years were spent mainly at:

Slide 23 · 122. Swami Trigunatitananda, mentioned in this chapter, later went to:

- 123. Who was Sister Nivedita before becoming Swamiji's disciple?
- 126. Who among Swamiji's Indian friends helped him financially during his early
- 127. The chapter "Some Men Who Were with Swamiji" reveals Swamiji's:

Slide 24 · 128. Who among the following called Swami Vivekananda "the maker of modern India"?

- b) "He is the true voice of India's soul."

- 130. Which Indian leader regarded Swamiji as “the spiritual father of modern
- 132. John Henry Wright, who helped Vivekananda attend the Chicago Parliament, called

Slide 25 · 133. Mahatma Gandhi once said, “I have gone through his works very thoroughly and

- b) Swamiji deepened Gandhi’s patriotism through spiritual ideals
- 135. “He preached unto mankind their divinity and how to make it manifest in every
- b) Education means memorizing facts

Slide 26 · 138. In “Stirring Utterances,” Vivekananda compares India to a:

- 141. Swami Vivekananda said, "The world is the great gymnasium where we come to
- A) Physical strength is the most important goal
- B) India has inherent strength that must be awakened

Slide 27 · 143. Swamiji remarked, "Talk to yourself once in a day, otherwise you may miss meeting

- C) Talking to others is more important than self-examination
- 144. Swamiji said, "The greatest sin is to think yourself weak."
- 147. Swamiji stated, "Learn everything that is good from others, but do not lose your own

Slide 28 · 148. "Do not wait for anybody or anything."

- In the context of education, this means:
- 149. Swamiji said, "Be not afraid of anything. You will do marvelous work."
- 152. Vivekananda repeatedly calls for “strength” as India’s primary need. By “strength” he

Slide 29 · C) Renunciation must be enforced by law

- 154. When Vivekananda contrasts India and the West, his critique of the West focuses
- A) Its lack of scientific method
- B) A social evil when rigidly hereditary; duties and merits should matter, not birth

Slide 30 · D) Fictional storytelling exclusively

- 160. Vivekananda’s view on the relation between science and religion is:
- D) Religion is a subset of scientific method
- 161. Vivekananda’s notion of “universal acceptance” means:

Slide 31 · 164. Which of the following best describes Vivekananda’s view on poverty?

- 166. When Vivekananda speaks of India’s “mission” to the world, he primarily refers to:
- 167. Vivekananda’s treatment of religious pluralism can best be described as:
- 167. Which of these is an implication of Vivekananda’s “practical Vedanta” for public

Slide 32 · C) The only thing that matters for civilization

- B) Moral courage, independence of mind, and readiness to act for truth and service

- B) A mix of lofty metaphysical claims and concrete calls for social reform and education
- 172. During his travels, what did Swami Vivekananda realize about the condition of the

Slide 33 · C) 1901

- 174. Which event marked the first recognition of Vivekananda as a world teacher?
- 175. Which event strengthened Vivekananda's faith in the spiritual power of India despite
- B) To spread the true message of Vedanta and India's spiritual wisdom

Slide 34 · 179. In 1899, Swamiji started a Bengali Journal to carry forward the ideas propounded by

- the Ramakrishna Mission. It was called
- 180. Which of these ideas did Swamiji espouse all through his life?
- D) All of the above

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5 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0000401 · EV0000402

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Part V of the Indian constitution deals about union Executive.
- Union Executive Consists of The President, Vice-President, Council of Ministers headed by the Prime Minister and Attorney General of India.
- President is the head of the Indian states.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- Article 52 provides that there shall be a President of India and
- Article 53 provides that the executive powers of the Union shall be vested in the President of India and shall be exercised either directly or through officers subordinate to him in accordance with the Constitution.

- the elected members of both Houses of Parliament; and

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- The nominated members of the parliament & legislative assemblies and members of the legislative council cannot vote in the president election.
- The electoral college consists of the elected members of both Houses of Parliament and the state Legislative Assemblies. [including National capital territory of Delhi and Puducherry]
- Election to be held before the expiry of the tenure of the President in office (article 62 (1)). If the office falls vacant by death, resignation, removal or otherwise, election must be conducted within 6 months of the date of the vacancy. Once elected the President serves for 5 years.

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- The President shall hold office for a term of five years
- the President may, by writing under his hand addressed to the Vice-President, resign his office;
- the President may, for violation of the Constitution, be removed from office by impeachment.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- (b) Should be of not less than 35 years of age;
- (c) Should be qualified for elections as a member of the House of people; [i.e he must be registered as a voter in an parliamentary constituency,]
- (d) Should not hold any office of profit under the Government of India or any state Government or any local authority subject to the control of any of the said Government;

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- The President is eligible to be re-elected without any restrictions.
- But a person shall not be deemed to hold office of profit who is the president or the vice-president of the Union or the Governor of any state or the Minister of the Union or of any state.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- Condition of President's Office: Article 59
- If he is a member of either House of Parliament or a member of a House of the Legislature of any State, he shall be deemed to vacate his seat in that House on the date of entering into his office as President.
- Official residence, emoluments, and allowances of President

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- He shall be also entitled to emoluments, allowances, and privileges determined by Parliament.

- The emoluments and allowances of the President cannot be diminished or reduced during his term of office.
- Apart from all these conditions and rules, the President of India is also entitled to certain allowances and privileges, as he is the first citizen of the country. The President of India is entitled to rent-free accommodation, allowances, and privileges by law.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- The salary of the President has undergone several changes since independence. Some of these changes were: In 1951, the President of India used to get a salary of Rs. 10,000 and 15000 rupees as an allowance.
- In 1985, the President of India used to get a salary of Rs. 15,000 and 30000 rupees as an allowance.
- Rashtrapati Bhavan is the President's official residence, including reception halls, guest rooms, and offices. It is the largest residence of any head of state in the world.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- Article – 60: Oath or affirmation by the President
- According to Article 60, before entering upon his office, the president has to take an oath or an affirmation in the presence of the Chief Justice of India or, in his absence, the senior-most Judge of the Supreme Court available, an oath or affirmation in the following form, that is to say—
- —I, A.B., do swear in the name of God that I will faithfully execute the office solemnly affirm of President (or discharge the functions of the President) of India and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and wellbeing of the people of India.".

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- A resolution with the proposal to prefer such charges must be signed by at least one-fourth of the total members of the house and moved after giving at least 14 days advance notice. The resolution also needs to be passed by at least two-thirds majority of the house.
- When the resolution is passed by one of the Houses, the other House must investigate the charges. The President has been granted the right to be present or to be represented in such investigations.
- When the House investigating the charges passes the resolution by a two-thirds majority and declares the charges as sustaining, it results in removing the President from his office from the date of passing of the resolution

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 62 - Time of holding the election on expiry of the term and filling casual vacancies:
- Article 62 provides for the filling up of the vacancy to the office of the President. It defines the terms of office of the person filling the casual vacancy as well as the time of holding elections to fill the vacancy.

- An election to fill the vacancies, occurring due to the death, resignation or impeachment of the President, must be done as soon as possible. The elections, in any case, must be conducted within a time period of six months from the date of occurrence of the vacancy.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- The new person elected to the office of the President will be subject to all the provisions of Article 56 and will hold his office for a five-year term from the date of entering into the office.

Slide 15 · Constitutional Law, Cyber Law and Professional Ethics

- Privileges of the President: Article 361
- As President, He will enjoy the degree of immunity. Under Article 361, the President is protected from being answerable to any court for:
- The president shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise of those powers and duties. However, the conduct of the president may be brought under review by any court, tribunal or body appointed or designed by either houses of parliament for the investigation of the charge in impeachment proceedings. Thus the immunity afforded to the president will not restrict the right of any person to bring suit against the government of India.

Slide 16 · Constitutional Law, Cyber Law and Professional Ethics

- (a) a notice writing has been given to the president
- (b) 2 months have passed after the service of such notice and
- (c) the notice states the nature of proceeding, the cause of action, the name, residence and description of the party taking the proceedings and the relief claimed.

Slide 17 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 of the Indian Constitution states that all the executive powers of the Union will be vested in the President of India. President is allowed to exercise his executive powers through officers subordinate to him, directly or indirectly, in consonance to the provisions of the Constitution.
- Appointment of the high authorities of the Constitution like the Prime Minister and the Council of Ministers;
- Right of being informed about all the national affairs;

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- Appointment of the judges of the constitutional courts(Supreme Court and High Courts);
- Appointment of the state Governors, the Attorney General, the Comptroller, and Auditor General, the Chief Commissioner and members of the Election Commission of India;
- Administration of Union territories and appointment of the Chief Commissioners and Lieutenant Governor of the Centrally Administered Areas;

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 also states that the President shall be the Supreme Commander of all the Armed Forces of the Union of India. It also states that no specific provisions can reduce the scope of this general principle.
- As the Supreme Commander of the Armed Forces of the Union, President has powers regarding:
- Appointment of all the officers, including the appointment of the chiefs of the forces;

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- The President forms the Indian diplomacy and helps the nation to maintain cordial relationships with countries across the globe.
- All the Ambassadors and high commissioners in foreign nations are his representatives;
- Prior to ratification by Parliament, the treaties and agreements with other nations, are negotiated by the President.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

- During the budget session, the President is the first to address the Parliament;
- The President is empowered to summon a joint session in order to break the deadlock in the legislation process between the two Houses of the Parliament;
- President sanction is mandatory in cases of provisions relating to:

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Legislative provisions relating to fundamental rights of the citizens of India require the President's consent;
- President's consent is necessary for all the bills passed by the Parliament to become a law;
- President is empowered to promulgate ordinances when the Parliament is not in session;

Slide 23 · Constitutional Law, Cyber Law and Professional Ethics

- President receives reports of the Finance Commission and acts on its report.
- The Contingency Funds of India are at the disposal of the President.
- He exercises the power of grant of pardons and reprieves of punishments;

Slide 24 · Constitutional Law, Cyber Law and Professional Ethics

- Article 123 talks about the presidential powers to promulgate ordinances. An ordinance can be promulgated if:
- The ordinance which is promulgated by the President will have the same effect as that of an act or law of the Parliament.
- It shall be presented before both the Houses of Parliament for passing when it comes to the session;

Slide 25 · Constitutional Law, Cyber Law and Professional Ethics

- The ordinance may also expire if the resolutions disapproving it are passed by both the Houses of Parliament;
- It can be withdrawn at any time by the President;
- The ordinance must be in consonance to the Constitution of India else it shall be declared void.

Slide 26 · Constitutional Law, Cyber Law and Professional Ethics

- Article 72, provides for the provisions relating to the pardoning powers of the President. President can grant pardons, reprieves, respites, or remissions of punishments or remit suspend or commute the sentence given to a person by the court in the following cases:
- When the sentence is granted through a court-martial;
- When the sentence or punishment is given for offence of violation of any law relating to matters that fall in the ambit of Union's executive powers;

Slide 27 · Constitutional Law, Cyber Law and Professional Ethics

- A pardon completely absolves the offender from all sentences and punishments and disqualifications and places him in the same position as if he had never committed the offence.
- Respite means awarding a lesser punishment on some special grounds e.g., the pregnancy of a woman offender.
- Remission means reduction of the amount of sentence without changing its character, e.g. a sentence of one year may be remitted to 6 months.

Slide 28 · Constitutional Law, Cyber Law and Professional Ethics

- Pardoning power of the President: Article 72
- Commutation means exchange of one thing for another. It means substitution of one form of punishment for another of a lighter character, eg for rigorous imprisonment to simple imprisonment.

Slide 29 · Constitutional Law, Cyber Law and Professional Ethics

- Article 352 of the Constitution of India grants President, three kinds of emergency powers as well:
- When a National Emergency is declared in case of external aggression or internal armed rebellion, the President holds the powers to declare a state of emergency. Thus the President's rule gets established in the country. However, the prime minister and the Council of Ministers must recommend such an emergency;
- When there exists a constitutional or law and order breakdown situation in a state, the President may declare a state of emergency in such cases. The state would then come under Governor's rule;

Slide 30 · Constitutional Law, Cyber Law and Professional Ethics

- Emergency power of the President - 352

- Whenever the financial stability of the nation or any country is seriously affected, the President has the right to intervene and direct the state to check and maintain public expenditure.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- He acts as the President of India in case of death removal or resignation of the President of India.
- Even if the President is unable to exercise his duties due to illness, absence or any other cause, the Vice-President can officiate any duties of the President.
- During such tenures, the Vice-President is eligible to salaries, allowances that are payable to the President and ceases to be the Chairman of the Rajya Sabha

Slide 32 · Constitutional Law, Cyber Law and Professional Ethics

- The Parliament enacted the President (Discharge of Functions) Act 1969 by virtue of powers vested in the Parliament under article 70. In the absence of the President and the Vice-President the Chief Justice of India or the senior most Supreme court judge shall act as President till the new President takes office.
- The Vice President (Article 63): Article 63 talks about the vice president of India.
- There are some important functions and duties to be performed by the Vice-President of India. Article 64 and Article 65 of the Indian constitution talks about the following functions:

Slide 33 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice President casts his vote in case of a tie in Rajya Sabha;
- He protects the rights and privileges of the members of the Rajya Sabha;
- The Vice-President shall perform the functions of President, in cases where the President is not able to perform his functions due to absence or illness etc until the President resumes his duty;

Slide 34 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice-President shall act as President, If the vacancy is created for the post of President due to his resignation, removal, and death or otherwise until a new President is elected;
- The period between the Vice-President acting as the President and the election of a new President can be extended for a maximum period of six months.

Slide 35 · Constitutional Law, Cyber Law and Professional Ethics

- He should not be member of either house of the parliament
- Should not hold any office of profit under Central Government, State Government, local or other authority. [Art.66(4)]
- The candidate for the post of VP must be proposed by 20 voters and must be seconded by 20 voters.

Slide 36 · Constitutional Law, Cyber Law and Professional Ethics

- Electoral College[members of both houses of parliament] of all MP's in accordance with the system of proportional representation by means of single transferable vote and voting at such election shall be secret ballot.
- If the election is declared as void, then whatever that was done by him is sustained.
- If the seat falls vacant, election is to be conducted Immediately. [Article 68(2)]

Slide 37 · Constitutional Law, Cyber Law and Professional Ethics

- He cannot be an MP or MLA, in case he is elected as Vice president, it is deemed that the seat to the Legislative body is vacated. [Article 66(2)]
- Resignation to the President. [Resignation of President- to Vice President who shall be bound to inform the Speaker of Lok Sabha]
- Removal – Resolution of the Rajya Sabha passed by absolute Majority of total membership and agreed to by the Lok Sabha by simple majority. Prior notice of 14 days to be served. No inquiry is required for removal of Vice-President.

Slide 38 · Constitutional Law, Cyber Law and Professional Ethics

- (1) There shall be a Council of Ministers with the Prime Minister at the head to aid and advice the President who shall, in the exercise of his functions, act in accordance with such advice:
- Provided that the President may request the Council of Minsters to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.
- (2) The question whether, any, and if so what, advice was tendered by Ministers to the President shall not be inquired into in any court.

Slide 39 · Constitutional Law, Cyber Law and Professional Ethics

- There should be a Council of Ministers to aid and advise the president;
- The Council of Ministers must have a Prime Minister at the head to aid and advise the President;
- The President should exercise his functions and act in accordance with advice rendered by the Council of Ministers;

Slide 40 · Constitutional Law, Cyber Law and Professional Ethics

- The executive powers in India are exercised by the Council of Ministers. These ministers constitute ministries having cabinet minister, junior minister, etc. Before 2003, the size of ministries was not specified under any provision leading to a lot of chaos.
- After the 91st amendment Act of 2003 came into existence, it marked a ceiling limit to the size of the ministries. The amendment stated that the strength of the Council of Ministers cannot exceed more than 15% of the total number of members of the Lok sabha or relevant Legislative Assembly of the state.
- An exception was provided to the smaller states like Sikkim, Mizoram, and Goa, having a strength of lesser than 40 members in the legislative assemblies.

Slide 41 · Constitutional Law, Cyber Law and Professional Ethics

- Cabinets ministers: The cabinet ranks Minister are the head of their department. They attend the cabinet meeting as a matter of right however, a person can be appointed cabinet minister without a portfolio. The 44th constitution amendment act (1978) has confirmed constitution status on the cabinet minister.
- Minister of state: The minister of state is formally of cabinet Status and are paid the same salary as the cabinet minister and they hold independent charge of their department but they attend the cabinet meeting only when invited.
- Deputy ministers: The deputy ministers work under the minister of state and have no separate charge of a department. They get a lesser salary than the minister of state or cabinet minister. They assist the Minister in charge of a department or minister and take no part in cabinet.

Slide 42 · Constitutional Law, Cyber Law and Professional Ethics

- Article 102(2) and Article 191(2) provides for Anti-Defection laws regarding the members of Lok Sabha. According to this law, a member of a House, belonging to any political party, shall be disqualified as a member of the House on the following basis
- If the person voluntarily gives up his/her membership of the political party to which he/she belongs; or
- If the person votes or abstains from voting in contrary to any direction issued by the political party or by any person or authority authorized to give directions.

Slide 43 · Constitutional Law, Cyber Law and Professional Ethics

- Disqualification on defection on the ground of split in a political party
- In either case, the prior permission of such political party, person or authority must be sought. The voting or abstention must be approved by the political party, person or authority within fifteen days from the date of voting or abstention.
- When a member of a House claims that he and any other members of his party have formed a group representing a faction emerging as a result of a split in his original political party. If such a group consists of one-third or more of the members of such a political party then the ministers cannot be disqualified under Anti-Defection laws.

Slide 44 · Constitutional Law, Cyber Law and Professional Ethics

- The Prime Minister shall be appointed by the President and other Ministers shall be appointed by the President on the advice of the Prime Minister.
- (1A) The total number of Ministers including the Prime Minister, in the Council of Ministers shall not exceed fifteen percent, of the total number of members of the House of the People.
- (1B) A member of either House of Parliament belonging to any political party who is disqualified for being a member of that House under paragraph 2 of the Tenth Schedule shall also be disqualified to be appointed as a Minister under clause (1) for duration of the period commencing from the date of his disqualification till the date on which the term of his office as such member would expire or where he contests any election to either House of Parliament

before the expiry of such period, till the date on which he is declared elected whichever is earlier.

Slide 45 · Constitutional Law, Cyber Law and Professional Ethics

- (4) Before a Minister enters upon his office, the President shall administer to him the oaths of office and of secrecy according to the forms set out for the purpose in the Third Schedule.
- (5) A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister.
- (6) The salaries and allowances of Ministers shall be such as Parliament may from time-to-time by law determine and, until Parliament so determines, shall be as specified in the Second Schedule.

Slide 46 · Constitutional Law, Cyber Law and Professional Ethics

- Article 75(3) Our Constitution clearly states that "The Council of Ministers shall be collectively responsible to 'House of the People". It means that the Ministers are responsible to the Lok Sabha collectively.
- The essence of collective responsibility is that, 'the Minister must vote with the government, speak in defense of it if the Prime Minister insists, and he/she cannot afterwards reject criticism of his act, either in Parliament or in the constituencies, on the ground that he/she did not agree with the decision.' This responsibility has two implications.
- It means that every member of the Council of ministers accepts responsibility for each and every decision of the Cabinet. When a decision has been taken by the Cabinet, every Minister has to stand by it. If a Minister does not agree with the Cabinet decision, the only alternative left to him/her is to resign from the Council of Ministers.

Slide 47 · Constitutional Law, Cyber Law and Professional Ethics

- 2. Also the vote of no-confidence against the Prime Minister is a vote against the whole Council of Ministers. Similarly, adverse vote in the Lok Sabha on any government bill or budget implies lack of confidence in the entire Council of Ministers, not only the mover of the bill.
- Though the Ministers are collectively responsible to the Lok Sabha, they shall be individually responsible to the Head of the State i.e., President.
- However, since the President has to act on the advice of the Prime Minister, in practice, this power is exercised by the Prime Minister. The Prime Minister ask the Minister to resign.

Slide 48 · Constitutional Law, Cyber Law and Professional Ethics

- In order to be a Minister, a person has to be a member of either of the two Houses of Parliament.
- However, even if a person is not a member of any of the two Houses, he can become a Minister for a period of six months.
- Within six months the Minister has to get himself/herself elected to either House of Parliament, failing which he/she ceases to be a Minister.

Slide 49 · Constitutional Law, Cyber Law and Professional Ethics

- In our country, the Lok Sabha has a five-year term but it can be dissolved earlier. Article 83(2) of the Indian Constitution states that at the completion of five years term, from the starting date of Lok Sabha meetings, it can be dissolved. In such cases, an election is held to elect the new Members of Parliament.
- According to 85(b) The Lok Sabha can also be dissolved by the President on the advice of the Prime Minister before the expiry of its term.
- The President can also dissolve the Lok Sabha, if he feels that a viable government cannot be formed, after the resignation or fall of a regime, as the case may be.

Slide 50 · Constitutional Law, Cyber Law and Professional Ethics

- At first, the Prime Minister is appointed by the President and then the President appoints other ministers on the advice of the Prime Minister.
- The provision clearly states that any minister, who is not a member of either House of the Parliament, shall cease to be a minister after the period of six months from the date of his appointment.
- The non-member must get elected to either House of the Parliament in order to continue as a Minister of Lok Sabha.

Slide 51 · Constitutional Law, Cyber Law and Professional Ethics

- A convicted person cannot be appointed Chief Minister
- When the question arose whether a convicted can be appointed as Chief Minister or not.
- The issue was decided in the negative by the Supreme Court in the famous case known as Ms. J. Jayalalitha Case. It was held that any person who is convicted for a criminal offence and sentenced to imprisonment, for a period of two years, or more, cannot be appointed the Chief Minister of any State under Article 164(1) of the Indian Constitution.

Slide 52 · Constitutional Law, Cyber Law and Professional Ethics

- The state executive is made up of the Governor, Chief Minister, Council of Ministers, and Advocate-General of State.
- The Constitution of India by article 153, creates the office of the Governor. Thus each State shall have a Governor. The executive power of the State is vested in the Governor.
- Governor: constitutional - union government nominates Governor in each state.

Slide 53 · Constitutional Law, Cyber Law and Professional Ethics

- must be a citizen of India; and
- Must not belong to the state where he is appointed and
- Consult the Chief Minister of the state where to be appointed.

Slide 54 · Constitutional Law, Cyber Law and Professional Ethics

- The Governor must not be a member of either House of Parliament and House of the Legislature of any State.

- The salary and allowances of the Governor cannot be reduced during his term of office [article 158(4)].
- The Governor is required to take an oath or affirmation in the presence of the Chief Justice of the High Court or if he is not present, in the presence of the senior-most Judge of the High Court.[Article 159]

Slide 55 · Constitutional Law, Cyber Law and Professional Ethics

- How can the Governor be removed from his office? Tenure and removal (A.156)
- Subject to the foregoing provisions of this Article, a Governor shall hold office for a term of five years from the date on which he enters upon his office.
- Provided that a Governor shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

Slide 56 · State Executive- Governor's powers and functions

- He appoints the Chief Minister and on his advice the other Minister.
- He also appoints the Advocate- General of the State and the members of the State Public Service Commission.
- He also appoints the State Election Commission (Article 243K) and the State Finance Commission (Article 243K).

Slide 57 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- The leader of the political party that gets the majority of the votes - appointed as the Chief Minister of the state.
- In case, no party gets a majority - Governor gets to use his discretion and appoint a Chief Minister.

Slide 58 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- Criteria : 1) 25 years minimum age and
- The Chief Minister can reconstruct his Ministry and the right to demand the resignation of any of the ministers under him.

Slide 59 · Leader of the House- Makes all the announcements concerning the new or amended policies.

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Aids and Advises the Governor- The decisions of the council of ministers are communicated to the governor by the Chief Minister.

Slide 60 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 61 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 62 · Maximum size of Ministers

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- The new clause (1A) puts a maximum limit of number of Ministers to be appointed to the Council of Ministers. It provides that the total number of Ministers, including the Chief Minister in the Council of Ministers in a State shall not exceed 15 percent of the total number of members of the Legislative Assembly of that State provided that the number of Ministers, including the Chief Minister in a State, shall not be less than 12 for smaller States. In those States where the total number of Ministers is more than 15% at the time of the commencement of the 91st Amendment Act, 2003 it shall be reduced to 15 percent with 6 months from the date on which the President notifies the date for application of the amendment.

Slide 63 · Disqualification on ground of defection

- The new clause (1B) provides that where the 1/3 members of the original political party defect from the party their membership of the legislature will automatically come to an end. Such a member cannot be appointed as a Minister.
- In general, the relation between the Governor and his Ministers is the same as that between the President and his Ministers, with this important difference that while the Constitution does not empower the President to exercise any function it authorises the Governor to exercise some function 'in his discretion'.
- Article 163 says that there shall be a Council of Ministers with the Chief Minister as the head to aid and advice the Governor. The exercise of his functions, except insofar as he is by or under the Constitution required to exercise his functions on his discretion.

Slide 64 · In the following circumstances the Governor will be called upon to exercise his discretion

- Appointment of the Chief Minister,
- the dismissing of a Minister,
- advising the President for the proclamation of an emergency under article 356 of the Constitution.

Slide 65 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- To Aid and Advice the Governor: The Chief Minister is the link between the Cabinet and the Governor. It is he who communicates to the Governor all decisions of the Council of Ministers. He has to furnish such information relating to the administration of the State as the Governor may call for.
- 2. The Chief Minister is at the Head of the Council of Ministers: As Head of the State Cabinet, the Chief Minister enjoys the following powers:

Slide 66 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- i) Formation of the Ministry: The other Ministers are appointed by the Governor on the advice of the Chief Minister. The Chief Minister has a free hand in preparing the list of his colleagues. The Governor may suggest the names of the persons to be included in the Ministry, but he cannot insist upon any person to be included in the Ministry. Assigning departments or portfolios to the Ministers is done by the Governor on the advice of the CM. The CM can allocate and reshuffles portfolios among ministers.

Slide 67 · The powers and functions of Chief Minister are as follows:

- Other than this the CM has the following important powers;
- The activities of all ministers are coordinated, guided and controlled by the chief minister.
- If the chief minister resigns that the government also collapses.

Slide 68 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Other than this the CM has the following important powers;
- 10. Member of the Inter State Council and the National Development Council both headed by the prime minister.

Slide 69 · Constitutional Law, Cyber Law and Professional Ethics

- Indian Parliament consists of Lok Sabha [The House of the People], Rajya Sabha[The council of States], and the President of India.
- At the state level, the legislature is composed of the Legislative Assembly [Vidhana Sabha-lower house] and Legislative Council [Vidhana Parishad- upper house] and the Governor of the State.

- Constitution of the Parliament : India has chosen the parliamentary form of government with the head of the state as an elected person. Therefore, it is a Parliamentary republic.

Slide 70 · Constitutional Law, Cyber Law and Professional Ethics

- Though the practice of Bicameralism is a practice that was followed in the UK, India chose to follow the pattern that was followed by the USA. In the UK the two houses are the House of Lords and the House of Commons in which the House of Lords is a body that represents the nobility (referred to as peerage) who contributed to the stability in the UK when there was a monarchy and subsequently. Peerages are either inherited or otherwise they are enjoyed for life. The House of Commons consists of elected representatives from territorial constituencies.
- In the USA, both the Senate and the House of Representatives consist of elected members only.
- The Parliament is constituted under article 79 to include the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha).

Slide 71 · Constitutional Law, Cyber Law and Professional Ethics

- According to Article 170, there should be a Legislative Assembly - can have at most 500 constituencies and at least 60 constituencies.
- These constituencies would be represented by the members who would be selected through the process of direct election.
- Article 171: The total members in the Legislative Council should not exceed one-third of the total members in the state Legislative Assembly. Elected from the district boards, municipalities and other local authorities which is specified by the Parliament according to law.

Slide 72 · Constitutional Law, Cyber Law and Professional Ethics

- Qualifications of Membership: Article 173:
- Must be a citizen of India.
- The member of the Legislative Assembly should be more than 25 years. For being a member of the Legislative Council one should be more than 30 years.

Slide 73 · Constitutional Law, Cyber Law and Professional Ethics

- Office of profit under the state or central government.
- Disqualified by the law of the Parliament.

Slide 74 · Constitutional Law, Cyber Law and Professional Ethics

- Image-only source page; see the visual page locator in `datasets/content-index.json`.

EV0000401 · EV0000402 · EV0000403 · +219 source units in pack.json

6 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0000623 · EV0000624

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Part V of the Indian constitution deals about union Executive.
- Union Executive Consists of The President, Vice-President, Council of Ministers headed by the Prime Minister and Attorney General of India.
- President is the head of the Indian states.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- Article 52 provides that there shall be a President of India and
- Article 53 provides that the executive powers of the Union shall be vested in the President of India and shall be exercised either directly or through officers subordinate to him in accordance with the Constitution.
- the elected members of both Houses of Parliament; and

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- The nominated members of the parliament & legislative assemblies and members of the legislative council cannot vote in the president election.
- The electoral college consists of the elected members of both Houses of Parliament and the state Legislative Assemblies. [including National capital territory of Delhi and Puducherry]
- Election to be held before the expiry of the tenure of the President in office (article 62 (1)). If the office falls vacant by death, resignation, removal or otherwise, election must be conducted within 6 months of the date of the vacancy. Once elected the President serves for 5 years.

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- The President shall hold office for a term of five years
- the President may, by writing under his hand addressed to the Vice-President, resign his office;

- the President may, for violation of the Constitution, be removed from office by impeachment.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- (b) Should be of not less than 35 years of age;
- (c) Should be qualified for elections as a member of the House of people; [i.e he must be registered as a voter in an parliamentary constituency,]
- (d) Should not hold any office of profit under the Government of India or any state Government or any local authority subject to the control of any of the said Government;

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- The President is eligible to be re-elected without any restrictions.
- But a person shall not be deemed to hold office of profit who is the president or the vice-president of the Union or the Governor of any state or the Minister of the Union or of any state.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- Condition of President's Office: Article 59
- If he is a member of either House of Parliament or a member of a House of the Legislature of any State, he shall be deemed to vacate his seat in that House on the date of entering into his office as President.
- Official residence, emoluments, and allowances of President

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- He shall be also entitled to emoluments, allowances, and privileges determined by Parliament.
- The emoluments and allowances of the President cannot be diminished or reduced during his term of office.
- Apart from all these conditions and rules, the President of India is also entitled to certain allowances and privileges, as he is the first citizen of the country. The President of India is entitled to rent-free accommodation, allowances, and privileges by law.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- The salary of the President has undergone several changes since independence. Some of these changes were: In 1951, the President of India used to get a salary of Rs. 10,000 and 15000 rupees as an allowance.
- In 1985, the President of India used to get a salary of Rs. 15,000 and 30000 rupees as an allowance.
- Rashtrapati Bhavan is the President's official residence, including reception halls, guest rooms, and offices. It is the largest residence of any head of state in the world.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- Article – 60: Oath or affirmation by the President

- According to Article 60, before entering upon his office, the president has to take an oath or an affirmation in the presence of the Chief Justice of India or, in his absence, the senior-most Judge of the Supreme Court available, an oath or affirmation in the following form, that is to say—
- —I, A.B., do swear in the name of God that I will faithfully execute the office solemnly affirm of President (or discharge the functions of the President) of India and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and wellbeing of the people of India.".

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- A resolution with the proposal to prefer such charges must be signed by at least one-fourth of the total members of the house and moved after giving at least 14 days advance notice. The resolution also needs to be passed by at least two-thirds majority of the house.
- When the resolution is passed by one of the Houses, the other House must investigate the charges. The President has been granted the right to be present or to be represented in such investigations.
- When the House investigating the charges passes the resolution by a two-thirds majority and declares the charges as sustaining, it results in removing the President from his office from the date of passing of the resolution

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 62 - Time of holding the election on expiry of the term and filling casual vacancies:
- Article 62 provides for the filling up of the vacancy to the office of the President. It defines the terms of office of the person filling the casual vacancy as well as the time of holding elections to fill the vacancy.
- An election to fill the vacancies, occurring due to the death, resignation or impeachment of the President, must be done as soon as possible. The elections, in any case, must be conducted within a time period of six months from the date of occurrence of the vacancy.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- The new person elected to the office of the President will be subject to all the provisions of Article 56 and will hold his office for a five-year term from the date of entering into the office.

Slide 15 · Constitutional Law, Cyber Law and Professional Ethics

- Privileges of the President: Article 361
- As President, He will enjoy the degree of immunity. Under Article 361, the President is protected from being answerable to any court for:
- The president shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise of those powers and duties. However, the conduct of the president may be brought under review by any court, tribunal or body appointed or designed by either houses of parliament for the investigation of the charge in impeachment proceedings. Thus the

immunity afforded to the president will not restrict the right of any person to bring suit against the government of India.

Slide 16 · Constitutional Law, Cyber Law and Professional Ethics

- (a) a notice writing has been given to the president
- (b) 2 months have passed after the service of such notice and
- (c) the notice states the nature of proceeding, the cause of action, the name, residence and description of the party taking the proceedings and the relief claimed.

Slide 17 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 of the Indian Constitution states that all the executive powers of the Union will be vested in the President of India. President is allowed to exercise his executive powers through officers subordinate to him, directly or indirectly, in consonance to the provisions of the Constitution.
- Appointment of the high authorities of the Constitution like the Prime Minister and the Council of Ministers;
- Right of being informed about all the national affairs;

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- Appointment of the judges of the constitutional courts(Supreme Court and High Courts);
- Appointment of the state Governors, the Attorney General, the Comptroller, and Auditor General, the Chief Commissioner and members of the Election Commission of India;
- Administration of Union territories and appointment of the Chief Commissioners and Lieutenant Governor of the Centrally Administered Areas;

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 also states that the President shall be the Supreme Commander of all the Armed Forces of the Union of India. It also states that no specific provisions can reduce the scope of this general principle.
- As the Supreme Commander of the Armed Forces of the Union, President has powers regarding:
- Appointment of all the officers, including the appointment of the chiefs of the forces;

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- The President forms the Indian diplomacy and helps the nation to maintain cordial relationships with countries across the globe.
- All the Ambassadors and high commissioners in foreign nations are his representatives;
- Prior to ratification by Parliament, the treaties and agreements with other nations, are negotiated by the President.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

- During the budget session, the President is the first to address the Parliament;

- The President is empowered to summon a joint session in order to break the deadlock in the legislation process between the two Houses of the Parliament;
- President sanction is mandatory in cases of provisions relating to:

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Legislative provisions relating to fundamental rights of the citizens of India require the President's consent;
- President's consent is necessary for all the bills passed by the Parliament to become a law;
- President is empowered to promulgate ordinances when the Parliament is not in session;

Slide 23 · Constitutional Law, Cyber Law and Professional Ethics

- President receives reports of the Finance Commission and acts on its report.
- The Contingency Funds of India are at the disposal of the President.
- He exercises the power of grant of pardons and reprieves of punishments;

Slide 24 · Constitutional Law, Cyber Law and Professional Ethics

- Article 123 talks about the presidential powers to promulgate ordinances. An ordinance can be promulgated if:
- The ordinance which is promulgated by the President will have the same effect as that of an act or law of the Parliament.
- It shall be presented before both the Houses of Parliament for passing when it comes to the session;

Slide 25 · Constitutional Law, Cyber Law and Professional Ethics

- The ordinance may also expire if the resolutions disapproving it are passed by both the Houses of Parliament;
- It can be withdrawn at any time by the President;
- The ordinance must be in consonance to the Constitution of India else it shall be declared void.

Slide 26 · Constitutional Law, Cyber Law and Professional Ethics

- Article 72, provides for the provisions relating to the pardoning powers of the President. President can grant pardons, reprieves, respites, or remissions of punishments or remit suspend or commute the sentence given to a person by the court in the following cases:
- When the sentence is granted through a court-martial;
- When the sentence or punishment is given for offence of violation of any law relating to matters that fall in the ambit of Union's executive powers;

Slide 27 · Constitutional Law, Cyber Law and Professional Ethics

- A pardon completely absolves the offender from all sentences and punishments and disqualifications and places him in the same position as if he had never committed the offence.

- Respite means awarding a lesser punishment on some special grounds e.g., the pregnancy of a woman offender.
- Remission means reduction of the amount of sentence without changing its character, e.g. a sentence of one year may be remitted to 6 months.

Slide 28 · Constitutional Law, Cyber Law and Professional Ethics

- Pardoning power of the President: Article 72
- Commutation means exchange of one thing for another. It means substitution of one form of punishment for another of a lighter character, eg for rigorous imprisonment to simple imprisonment.

Slide 29 · Constitutional Law, Cyber Law and Professional Ethics

- Article 352 of the Constitution of India grants President, three kinds of emergency powers as well:
- When a National Emergency is declared in case of external aggression or internal armed rebellion, the President holds the powers to declare a state of emergency. Thus the President's rule gets established in the country. However, the prime minister and the Council of Ministers must recommend such an emergency;
- When there exists a constitutional or law and order breakdown situation in a state, the President may declare a state of emergency in such cases. The state would then come under Governor's rule;

Slide 30 · Constitutional Law, Cyber Law and Professional Ethics

- Emergency power of the President - 352
- Whenever the financial stability of the nation or any country is seriously affected, the President has the right to intervene and direct the state to check and maintain public expenditure.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- He acts as the President of India in case of death removal or resignation of the President of India.
- Even if the President is unable to exercise his duties due to illness, absence or any other cause, the Vice-President can officiate any duties of the President.
- During such tenures, the Vice-President is eligible to salaries, allowances that are payable to the President and ceases to be the Chairman of the Rajya Sabha

Slide 32 · Constitutional Law, Cyber Law and Professional Ethics

- The Parliament enacted the President (Discharge of Functions) Act 1969 by virtue of powers vested in the Parliament under article 70. In the absence of the President and the Vice-President the Chief Justice of India or the senior most Supreme court judge shall act as President till the new President takes office.
- The Vice President (Article 63): Article 63 talks about the vice president of India.

- There are some important functions and duties to be performed by the Vice-President of India. Article 64 and Article 65 of the Indian constitution talks about the following functions:

Slide 33 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice President casts his vote in case of a tie in Rajya Sabha;
- He protects the rights and privileges of the members of the Rajya Sabha;
- The Vice-President shall perform the functions of President, in cases where the President is not able to perform his functions due to absence or illness etc until the President resumes his duty;

Slide 34 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice-President shall act as President, If the vacancy is created for the post of President due to his resignation, removal, and death or otherwise until a new President is elected;
- The period between the Vice-President acting as the President and the election of a new President can be extended for a maximum period of six months.

Slide 35 · Constitutional Law, Cyber Law and Professional Ethics

- He should not be member of either house of the parliament
- Should not hold any office of profit under Central Government, State Government, local or other authority. [Art.66(4)]
- The candidate for the post of VP must be proposed by 20 voters and must be seconded by 20 voters.

Slide 36 · Constitutional Law, Cyber Law and Professional Ethics

- Electoral College[members of both houses of parliament] of all MP's in accordance with the system of proportional representation by means of single transferable vote and voting at such election shall be secret ballot.
- If the election is declared as void, then whatever that was done by him is sustained.
- If the seat falls vacant, election is to be conducted Immediately. [Article 68(2)]

Slide 37 · Constitutional Law, Cyber Law and Professional Ethics

- He cannot be an MP or MLA, in case he is elected as Vice president, it is deemed that the seat to the Legislative body is vacated. [Article 66(2)]
- Resignation to the President. [Resignation of President- to Vice President who shall be bound to inform the Speaker of Lok Sabha]
- Removal – Resolution of the Rajya Sabha passed by absolute Majority of total membership and agreed to by the Lok Sabha by simple majority. Prior notice of 14 days to be served. No inquiry is required for removal of Vice-President.

Slide 38 · Constitutional Law, Cyber Law and Professional Ethics

- (1) There shall be a Council of Ministers with the Prime Minister at the head to aid and advice the President who shall, in the exercise of his functions, act in accordance with such advice:
- Provided that the President may request the Council of Minsters to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.
- (2) The question whether, any, and if so what, advice was tendered by Ministers to the President shall not be inquired into in any court.

Slide 39 · Constitutional Law, Cyber Law and Professional Ethics

- There should be a Council of Ministers to aid and advise the president;
- The Council of Ministers must have a Prime Minister at the head to aid and advise the President;
- The President should exercise his functions and act in accordance with advice rendered by the Council of Ministers;

Slide 40 · Constitutional Law, Cyber Law and Professional Ethics

- The executive powers in India are exercised by the Council of Ministers. These ministers constitute ministries having cabinet minister, junior minister, etc. Before 2003, the size of ministries was not specified under any provision leading to a lot of chaos.
- After the 91st amendment Act of 2003 came into existence, it marked a ceiling limit to the size of the ministries. The amendment stated that the strength of the Council of Ministers cannot exceed more than 15% of the total number of members of the Lok sabha or relevant Legislative Assembly of the state.
- An exception was provided to the smaller states like Sikkim, Mizoram, and Goa, having a strength of lesser than 40 members in the legislative assemblies.

Slide 41 · Constitutional Law, Cyber Law and Professional Ethics

- Cabinets ministers: The cabinet ranks Minister are the head of their department. They attend the cabinet meeting as a matter of right however, a person can be appointed cabinet minister without a portfolio. The 44th constitution amendment act (1978) has confirmed constitution status on the cabinet minister.
- Minister of state: The minister of state is formally of cabinet Status and are paid the same salary as the cabinet minister and they hold independent charge of their department but they attend the cabinet meeting only when invited.
- Deputy ministers: The deputy ministers work under the minister of state and have no separate charge of a department. They get a lesser salary than the minister of state or cabinet minister. They assist the Minister in charge of a department or minister and take no part in cabinet.

Slide 42 · Constitutional Law, Cyber Law and Professional Ethics

- Article 102(2) and Article 191(2) provides for Anti-Defection laws regarding the members of Lok Sabha. According to this law, a member of a House, belonging to any political party,

shall be disqualified as a member of the House on the following basis

- If the person voluntarily gives up his/her membership of the political party to which he/she belongs; or
- If the person votes or abstains from voting in contrary to any direction issued by the political party or by any person or authority authorized to give directions.

Slide 43 · Constitutional Law, Cyber Law and Professional Ethics

- Disqualification on defection on the ground of split in a political party
- In either case, the prior permission of such political party, person or authority must be sought. The voting or abstention must be approved by the political party, person or authority within fifteen days from the date of voting or abstention.
- When a member of a House claims that he and any other members of his party have formed a group representing a faction emerging as a result of a split in his original political party. If such a group consists of one-third or more of the members of such a political party then the ministers cannot be disqualified under Anti-Defection laws.

Slide 44 · Constitutional Law, Cyber Law and Professional Ethics

- The Prime Minister shall be appointed by the President and other Ministers shall be appointed by the President on the advice of the Prime Minister.
- (1A) The total number of Ministers including the Prime Minister, in the Council of Ministers shall not exceed fifteen percent, of the total number of members of the House of the People.
- (1B) A member of either House of Parliament belonging to any political party who is disqualified for being a member of that House under paragraph 2 of the Tenth Schedule shall also be disqualified to be appointed as a Minister under clause (1) for duration of the period commencing from the date of his disqualification till the date on which the term of his office as such member would expire or where he contests any election to either House of Parliament before the expiry of such period, till the date on which he is declared elected whichever is earlier.

Slide 45 · Constitutional Law, Cyber Law and Professional Ethics

- (4) Before a Minister enters upon his office, the President shall administer to him the oaths of office and of secrecy according to the forms set out for the purpose in the Third Schedule.
- (5) A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister.
- (6) The salaries and allowances of Ministers shall be such as Parliament may from time-to-time by law determine and, until Parliament so determines, shall be as specified in the Second Schedule.

Slide 46 · Constitutional Law, Cyber Law and Professional Ethics

- Article 75(3) Our Constitution clearly states that “The Council of Ministers shall be collectively responsible to ‘House of the People”. It means that the Ministers are responsible to the Lok Sabha collectively.

- The essence of collective responsibility is that, 'the Minister must vote with the government, speak in defense of it if the Prime Minister insists, and he/she cannot afterwards reject criticism of his act, either in Parliament or in the constituencies, on the ground that he/she did not agree with the decision.' This responsibility has two implications.
- It means that every member of the Council of ministers accepts responsibility for each and every decision of the Cabinet. When a decision has been taken by the Cabinet, every Minister has to stand by it. If a Minister does not agree with the Cabinet decision, the only alternative left to him/her is to resign from the Council of Ministers.

Slide 47 · Constitutional Law, Cyber Law and Professional Ethics

- 2. Also the vote of no-confidence against the Prime Minister is a vote against the whole Council of Ministers. Similarly, adverse vote in the Lok Sabha on any government bill or budget implies lack of confidence in the entire Council of Ministers, not only the mover of the bill.
- Though the Ministers are collectively responsible to the Lok Sabha, they shall be individually responsible to the Head of the State i.e., President.
- However, since the President has to act on the advice of the Prime Minister, in practice, this power is exercised by the Prime Minister. The Prime Minister ask the Minister to resign.

Slide 48 · Constitutional Law, Cyber Law and Professional Ethics

- In order to be a Minister, a person has to be a member of either of the two Houses of Parliament.
- However, even if a person is not a member of any of the two Houses, he can become a Minister for a period of six months.
- Within six months the Minister has to get himself/herself elected to either House of Parliament, failing which he/she ceases to be a Minister.

Slide 49 · Constitutional Law, Cyber Law and Professional Ethics

- In our country, the Lok Sabha has a five-year term but it can be dissolved earlier. Article 83(2) of the Indian Constitution states that at the completion of five years term, from the starting date of Lok Sabha meetings, it can be dissolved. In such cases, an election is held to elect the new Members of Parliament.
- According to 85(b) The Lok Sabha can also be dissolved by the President on the advice of the Prime Minister before the expiry of its term.
- The President can also dissolve the Lok Sabha, if he feels that a viable government cannot be formed, after the resignation or fall of a regime, as the case may be.

Slide 50 · Constitutional Law, Cyber Law and Professional Ethics

- At first, the Prime Minister is appointed by the President and then the President appoints other ministers on the advice of the Prime Minister.
- The provision clearly states that any minister, who is not a member of either House of the Parliament, shall cease to be a minister after the period of six months from the date of his appointment.

- The non-member must get elected to either House of the Parliament in order to continue as a Minister of Lok Sabha.

Slide 51 · Constitutional Law, Cyber Law and Professional Ethics

- A convicted person cannot be appointed Chief Minister
- When the question arose whether a convicted can be appointed as Chief Minister or not.
- The issue was decided in the negative by the Supreme Court in the famous case known as Ms. J. Jayalalitha Case. It was held that any person who is convicted for a criminal offence and sentenced to imprisonment, for a period of two years, or more, cannot be appointed the Chief Minister of any State under Article 164(1) of the Indian Constitution.

Slide 52 · Constitutional Law, Cyber Law and Professional Ethics

- The state executive is made up of the Governor, Chief Minister, Council of Ministers, and Advocate-General of State.
- The Constitution of India by article 153, creates the office of the Governor. Thus each State shall have a Governor. The executive power of the State is vested in the Governor.
- Governor: constitutional - union government nominates Governor in each state.

Slide 53 · Constitutional Law, Cyber Law and Professional Ethics

- must be a citizen of India; and
- Must not belong to the state where he is appointed and
- Consult the Chief Minister of the state where to be appointed.

Slide 54 · Constitutional Law, Cyber Law and Professional Ethics

- The Governor must not be a member of either House of Parliament and House of the Legislature of any State.
- The salary and allowances of the Governor cannot be reduced during his term of office [article 158(4)].
- The Governor is required to take an oath or affirmation in the presence of the Chief Justice of the High Court or if he is not present, in the presence of the senior-most Judge of the High Court.[Article 159]

Slide 55 · Constitutional Law, Cyber Law and Professional Ethics

- How can the Governor be removed from his office? Tenure and removal (A.156)
- Subject to the foregoing provisions of this Article, a Governor shall hold office for a term of five years from the date on which he enters upon his office.
- Provided that a Governor shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

Slide 56 · State Executive- Governor’s powers and functions

- He appoints the Chief Minister and on his advice the other Minister.

- He also appoints the Advocate- General of the State and the members of the State Public Service Commission.
- He also appoints the State Election Commission (Article 243K) and the State Finance Commission (Article 243K).

Slide 57 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- The leader of the political party that gets the majority of the votes - appointed as the Chief Minister of the state.
- In case, no party gets a majority - Governor gets to use his discretion and appoint a Chief Minister.

Slide 58 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- Criteria : 1) 25 years minimum age and
- The Chief Minister can reconstruct his Ministry and the right to demand the resignation of any of the ministers under him.

Slide 59 · Leader of the House- Makes all the announcements concerning the new or amended policies.

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Aids and Advises the Governor- The decisions of the council of ministers are communicated to the governor by the Chief Minister.

Slide 60 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 61 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 62 · Maximum size of Ministers

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- The new clause (1A) puts a maximum limit of number of Ministers to be appointed to the Council of Ministers. It provides that the total number of Ministers, including the Chief Minister in the Council of Ministers in a State shall not exceed 15 percent of the total number of members of the Legislative Assembly of that State provided that the number of Ministers, including the Chief Minister in a State, shall not be less than 12 for smaller States. In those States where the total number of Ministers is more than 15% at the time of the commencement of the 91st Amendment Act, 2003 it shall be reduced to 15 percent with 6 months from the date on which the President notifies the date for application of the amendment.

Slide 63 · Disqualification on ground of defection

- The new clause (1B) provides that where the 1/3 members of the original political party defect from the party their membership of the legislature will automatically come to an end. Such a member cannot be appointed as a Minister.
- In general, the relation between the Governor and his Ministers is the same as that between the President and his Ministers, with this important difference that while the Constitution does not empower the President to exercise any function it authorises the Governor to exercise some function 'in his discretion'.
- Article 163 says that there shall be a Council of Ministers with the Chief Minister as the head to aid and advice the Governor. The exercise of his functions, except insofar as he is by or under the Constitution required to exercise his functions on his discretion.

Slide 64 · In the following circumstances the Governor will be called upon to exercise his discretion

- Appointment of the Chief Minister,
- the dismissing of a Minister,
- advising the President for the proclamation of an emergency under article 356 of the Constitution.

Slide 65 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- To Aid and Advice the Governor: The Chief Minister is the link between the Cabinet and the Governor. It is he who communicates to the Governor all decisions of the Council of Ministers. He has to furnish such information relating to the administration of the State as the Governor may call for.
- 2. The Chief Minister is at the Head of the Council of Ministers: As Head of the State Cabinet, the Chief Minister enjoys the following powers:

Slide 66 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- i) Formation of the Ministry: The other Ministers are appointed by the Governor on the advice of the Chief Minister. The Chief Minister has a free hand in preparing the list of his colleagues. The Governor may suggest the names of the persons to be included in the Ministry, but he cannot insist upon any person to be included in the Ministry. Assigning departments or portfolios to the Ministers is done by the Governor on the advice of the CM. The CM can allocate and reshuffles portfolios among ministers.

Slide 67 · The powers and functions of Chief Minister are as follows:

- Other than this the CM has the following important powers;
- The activities of all ministers are coordinated, guided and controlled by the chief minister.
- If the chief minister resigns that the government also collapses.

Slide 68 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Other than this the CM has the following important powers;
- 10. Member of the Inter State Council and the National Development Council both headed by the prime minister.

Slide 69 · Constitutional Law, Cyber Law and Professional Ethics

- Indian Parliament consists of Lok Sabha [The House of the People], Rajya Sabha[The council of States], and the President of India.
- At the state level, the legislature is composed of the Legislative Assembly [Vidhana Sabha-lower house] and Legislative Council [Vidhana Parishad- upper house] and the Governor of the State.
- Constitution of the Parliament : India has chosen the parliamentary form of government with the head of the state as an elected person. Therefore, it is a Parliamentary republic.

Slide 70 · Constitutional Law, Cyber Law and Professional Ethics

- Though the practice of Bicameralism is a practice that was followed in the UK, India chose to follow the pattern that was followed by the USA. In the UK the two houses are the House of Lords and the House of Commons in which the House of Lords is a body that represents the nobility (referred to as peerage) who contributed to the stability in the UK when there was a monarchy and subsequently. Peerages are either inherited or otherwise they are enjoyed for life. The House of Commons consists of elected representatives from territorial constituencies.
- In the USA, both the Senate and the House of Representatives consist of elected members only.
- The Parliament is constituted under article 79 to include the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha).

Slide 71 · Constitutional Law, Cyber Law and Professional Ethics

- According to Article 170, there should be a Legislative Assembly - can have at most 500 constituencies and at least 60 constituencies.
- These constituencies would be represented by the members who would be selected through the process of direct election.
- Article 171: The total members in the Legislative Council should not exceed one-third of the total members in the state Legislative Assembly. Elected from the district boards, municipalities and other local authorities which is specified by the Parliament according to law.

Slide 72 · Constitutional Law, Cyber Law and Professional Ethics

- Qualifications of Membership: Article 173:
- Must be a citizen of India.
- The member of the Legislative Assembly should be more than 25 years. For being a member of the Legislative Council one should be more than 30 years.

Slide 73 · Constitutional Law, Cyber Law and Professional Ethics

- Office of profit under the state or central government.
- Disqualified by the law of the Parliament.

Slide 74 · Constitutional Law, Cyber Law and Professional Ethics

- Image-only source page; see the visual page locator in `datasets/content-index.json`.

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7 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0000845 · EV0000846

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Part V of the Indian constitution deals about union Executive.
- Union Executive Consists of The President, Vice-President, Council of Ministers headed by the Prime Minister and Attorney General of India.
- President is the head of the Indian states.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- Article 52 provides that there shall be a President of India and
- Article 53 provides that the executive powers of the Union shall be vested in the President of India and shall be exercised either directly or through officers subordinate to him in accordance with the Constitution.
- the elected members of both Houses of Parliament; and

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- The nominated members of the parliament & legislative assemblies and members of the legislative council cannot vote in the president election.
- The electoral college consists of the elected members of both Houses of Parliament and the state Legislative Assemblies. [including National capital territory of Delhi and Puducherry]
- Election to be held before the expiry of the tenure of the President in office (article 62 (1)). If the office falls vacant by death, resignation, removal or otherwise, election must be conducted within 6 months of the date of the vacancy. Once elected the President serves for 5 years.

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- The President shall hold office for a term of five years
- the President may, by writing under his hand addressed to the Vice-President, resign his office;
- the President may, for violation of the Constitution, be removed from office by impeachment.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- (b) Should be of not less than 35 years of age;
- (c) Should be qualified for elections as a member of the House of people; [i.e he must be registered as a voter in an parliamentary constituency,]
- (d) Should not hold any office of profit under the Government of India or any state Government or any local authority subject to the control of any of the said Government;

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- The President is eligible to be re-elected without any restrictions.
- But a person shall not be deemed to hold office of profit who is the president or the vice-president of the Union or the Governor of any state or the Minister of the Union or of any state.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- Condition of President's Office: Article 59
- If he is a member of either House of Parliament or a member of a House of the Legislature of any State, he shall be deemed to vacate his seat in that House on the date of entering into his office as President.
- Official residence, emoluments, and allowances of President

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- He shall be also entitled to emoluments, allowances, and privileges determined by Parliament.
- The emoluments and allowances of the President cannot be diminished or reduced during his term of office.
- Apart from all these conditions and rules, the President of India is also entitled to certain allowances and privileges, as he is the first citizen of the country. The President of India is entitled to rent-free accommodation, allowances, and privileges by law.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- The salary of the President has undergone several changes since independence. Some of these changes were: In 1951, the President of India used to get a salary of Rs. 10,000 and 15000 rupees as an allowance.
- In 1985, the President of India used to get a salary of Rs. 15,000 and 30000 rupees as an allowance.
- Rashtrapati Bhavan is the President's official residence, including reception halls, guest rooms, and offices. It is the largest residence of any head of state in the world.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- Article – 60: Oath or affirmation by the President
- According to Article 60, before entering upon his office, the president has to take an oath or an affirmation in the presence of the Chief Justice of India or, in his absence, the senior-most Judge of the Supreme Court available, an oath or affirmation in the following form, that is to say—
- **—**I, A.B., do swear in the name of God that I will faithfully execute the office solemnly affirm of President (or discharge the functions of the President) of India and will to the best of my ability preserve, protect and defend the Constitution and the law and that I will devote myself to the service and wellbeing of the people of India.".

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- A resolution with the proposal to prefer such charges must be signed by at least one-fourth of the total members of the house and moved after giving at least 14 days advance notice. The resolution also needs to be passed by at least two-thirds majority of the house.
- When the resolution is passed by one of the Houses, the other House must investigate the charges. The President has been granted the right to be present or to be represented in such investigations.

- When the House investigating the charges passes the resolution by a two-thirds majority and declares the charges as sustaining, it results in removing the President from his office from the date of passing of the resolution

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 62 - Time of holding the election on expiry of the term and filling casual vacancies:
- Article 62 provides for the filling up of the vacancy to the office of the President. It defines the terms of office of the person filling the casual vacancy as well as the time of holding elections to fill the vacancy.
- An election to fill the vacancies, occurring due to the death, resignation or impeachment of the President, must be done as soon as possible. The elections, in any case, must be conducted within a time period of six months from the date of occurrence of the vacancy.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- The new person elected to the office of the President will be subject to all the provisions of Article 56 and will hold his office for a five-year term from the date of entering into the office.

Slide 15 · Constitutional Law, Cyber Law and Professional Ethics

- Privileges of the President: Article 361
- As President, He will enjoy the degree of immunity. Under Article 361, the President is protected from being answerable to any court for:
- The president shall not be answerable to any court for the exercise and performance of the powers and duties of his office or for any act done or purporting to be done by him in the exercise of those powers and duties. However, the conduct of the president may be brought under review by any court, tribunal or body appointed or designed by either houses of parliament for the investigation of the charge in impeachment proceedings. Thus the immunity afforded to the president will not restrict the right of any person to bring suit against the government of India.

Slide 16 · Constitutional Law, Cyber Law and Professional Ethics

- (a) a notice writing has been given to the president
- (b) 2 months have passed after the service of such notice and
- (c) the notice states the nature of proceeding, the cause of action, the name, residence and description of the party taking the proceedings and the relief claimed.

Slide 17 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 of the Indian Constitution states that all the executive powers of the Union will be vested in the President of India. President is allowed to exercise his executive powers through officers subordinate to him, directly or indirectly, in consonance to the provisions of the Constitution.
- Appointment of the high authorities of the Constitution like the Prime Minister and the Council of Ministers;

- Right of being informed about all the national affairs;

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- Appointment of the judges of the constitutional courts(Supreme Court and High Courts);
- Appointment of the state Governors, the Attorney General, the Comptroller, and Auditor General, the Chief Commissioner and members of the Election Commission of India;
- Administration of Union territories and appointment of the Chief Commissioners and Lieutenant Governor of the Centrally Administered Areas;

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- Article 53 also states that the President shall be the Supreme Commander of all the Armed Forces of the Union of India. It also states that no specific provisions can reduce the scope of this general principle.
- As the Supreme Commander of the Armed Forces of the Union, President has powers regarding:
- Appointment of all the officers, including the appointment of the chiefs of the forces;

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- The President forms the Indian diplomacy and helps the nation to maintain cordial relationships with countries across the globe.
- All the Ambassadors and high commissioners in foreign nations are his representatives;
- Prior to ratification by Parliament, the treaties and agreements with other nations, are negotiated by the President.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

- During the budget session, the President is the first to address the Parliament;
- The President is empowered to summon a joint session in order to break the deadlock in the legislation process between the two Houses of the Parliament;
- President sanction is mandatory in cases of provisions relating to:

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Legislative provisions relating to fundamental rights of the citizens of India require the President's consent;
- President's consent is necessary for all the bills passed by the Parliament to become a law;
- President is empowered to promulgate ordinances when the Parliament is not in session;

Slide 23 · Constitutional Law, Cyber Law and Professional Ethics

- President receives reports of the Finance Commission and acts on its report.
- The Contingency Funds of India are at the disposal of the President.
- He exercises the power of grant of pardons and reprieves of punishments;

Slide 24 · Constitutional Law, Cyber Law and Professional Ethics

- Article 123 talks about the presidential powers to promulgate ordinances. An ordinance can be promulgated if:
- The ordinance which is promulgated by the President will have the same effect as that of an act or law of the Parliament.
- It shall be presented before both the Houses of Parliament for passing when it comes to the session;

Slide 25 · Constitutional Law, Cyber Law and Professional Ethics

- The ordinance may also expire if the resolutions disapproving it are passed by both the Houses of Parliament;
- It can be withdrawn at any time by the President;
- The ordinance must be in consonance to the Constitution of India else it shall be declared void.

Slide 26 · Constitutional Law, Cyber Law and Professional Ethics

- Article 72, provides for the provisions relating to the pardoning powers of the President. President can grant pardons, reprieves, respites, or remissions of punishments or remit suspend or commute the sentence given to a person by the court in the following cases:
- When the sentence is granted through a court-martial;
- When the sentence or punishment is given for offence of violation of any law relating to matters that fall in the ambit of Union's executive powers;

Slide 27 · Constitutional Law, Cyber Law and Professional Ethics

- A pardon completely absolves the offender from all sentences and punishments and disqualifications and places him in the same position as if he had never committed the offence.
- Respite means awarding a lesser punishment on some special grounds e.g., the pregnancy of a woman offender.
- Remission means reduction of the amount of sentence without changing its character, e.g. a sentence of one year may be remitted to 6 months.

Slide 28 · Constitutional Law, Cyber Law and Professional Ethics

- Pardoning power of the President: Article 72
- Commutation means exchange of one thing for another. It means substitution of one form of punishment for another of a lighter character, eg for rigorous imprisonment to simple imprisonment.

Slide 29 · Constitutional Law, Cyber Law and Professional Ethics

- Article 352 of the Constitution of India grants President, three kinds of emergency powers as well:
- When a National Emergency is declared in case of external aggression or internal armed rebellion, the President holds the powers to declare a state of emergency. Thus the

President's rule gets established in the country. However, the prime minister and the Council of Ministers must recommend such an emergency;
- When there exists a constitutional or law and order breakdown situation in a state, the President may declare a state of emergency in such cases. The state would then come under Governor's rule;

Slide 30 · Constitutional Law, Cyber Law and Professional Ethics

- Emergency power of the President - 352
- Whenever the financial stability of the nation or any country is seriously affected, the President has the right to intervene and direct the state to check and maintain public expenditure.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- He acts as the President of India in case of death removal or resignation of the President of India.
- Even if the President is unable to exercise his duties due to illness, absence or any other cause, the Vice-President can officiate any duties of the President.
- During such tenures, the Vice-President is eligible to salaries, allowances that are payable to the President and ceases to be the Chairman of the Rajya Sabha

Slide 32 · Constitutional Law, Cyber Law and Professional Ethics

- The Parliament enacted the President (Discharge of Functions) Act 1969 by virtue of powers vested in the Parliament under article 70. In the absence of the President and the Vice-President the Chief Justice of India or the senior most Supreme court judge shall act as President till the new President takes office.
- The Vice President (Article 63): Article 63 talks about the vice president of India.
- There are some important functions and duties to be performed by the Vice-President of India. Article 64 and Article 65 of the Indian constitution talks about the following functions:

Slide 33 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice President casts his vote in case of a tie in Rajya Sabha;
- He protects the rights and privileges of the members of the Rajya Sabha;
- The Vice-President shall perform the functions of President, in cases where the President is not able to perform his functions due to absence or illness etc until the President resumes his duty;

Slide 34 · Constitutional Law, Cyber Law and Professional Ethics

- The Vice-President shall act as President, If the vacancy is created for the post of President due to his resignation, removal, and death or otherwise until a new President is elected;
- The period between the Vice-President acting as the President and the election of a new President can be extended for a maximum period of six months.

Slide 35 · Constitutional Law, Cyber Law and Professional Ethics

- He should not be member of either house of the parliament
- Should not hold any office of profit under Central Government, State Government, local or other authority. [Art.66(4)]
- The candidate for the post of VP must be proposed by 20 voters and must be seconded by 20 voters.

Slide 36 · Constitutional Law, Cyber Law and Professional Ethics

- Electoral College[members of both houses of parliament] of all MP's in accordance with the system of proportional representation by means of single transferable vote and voting at such election shall be secret ballot.
- If the election is declared as void, then whatever that was done by him is sustained.
- If the seat falls vacant, election is to be conducted Immediately. [Article 68(2)]

Slide 37 · Constitutional Law, Cyber Law and Professional Ethics

- He cannot be an MP or MLA, in case he is elected as Vice president, it is deemed that the seat to the Legislative body is vacated. [Article 66(2)]
- Resignation to the President. [Resignation of President- to Vice President who shall be bound to inform the Speaker of Lok Sabha]
- Removal – Resolution of the Rajya Sabha passed by absolute Majority of total membership and agreed to by the Lok Sabha by simple majority. Prior notice of 14 days to be served. No inquiry is required for removal of Vice-President.

Slide 38 · Constitutional Law, Cyber Law and Professional Ethics

- (1) There shall be a Council of Ministers with the Prime Minister at the head to aid and advice the President who shall, in the exercise of his functions, act in accordance with such advice:
- Provided that the President may request the Council of Minsters to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.
- (2) The question whether, any, and if so what, advice was tendered by Ministers to the President shall not be inquired into in any court.

Slide 39 · Constitutional Law, Cyber Law and Professional Ethics

- There should be a Council of Ministers to aid and advise the president;
- The Council of Ministers must have a Prime Minister at the head to aid and advise the President;
- The President should exercise his functions and act in accordance with advice rendered by the Council of Ministers;

Slide 40 · Constitutional Law, Cyber Law and Professional Ethics

- The executive powers in India are exercised by the Council of Ministers. These ministers constitute ministries having cabinet minister, junior minister, etc. Before 2003, the size of ministries was not specified under any provision leading to a lot of chaos.
- After the 91st amendment Act of 2003 came into existence, it marked a ceiling limit to the size of the ministries. The amendment stated that the strength of the Council of Ministers cannot exceed more than 15% of the total number of members of the Lok sabha or relevant Legislative Assembly of the state.
- An exception was provided to the smaller states like Sikkim, Mizoram, and Goa, having a strength of lesser than 40 members in the legislative assemblies.

Slide 41 · Constitutional Law, Cyber Law and Professional Ethics

- Cabinets ministers: The cabinet ranks Minister are the head of their department. They attend the cabinet meeting as a matter of right however, a person can be appointed cabinet minister without a portfolio. The 44th constitution amendment act (1978) has confirmed constitution status on the cabinet minister.
- Minister of state: The minister of state is formally of cabinet Status and are paid the same salary as the cabinet minister and they hold independent charge of their department but they attend the cabinet meeting only when invited.
- Deputy ministers: The deputy ministers work under the minister of state and have no separate charge of a department. They get a lesser salary than the minister of state or cabinet minister. They assist the Minister in charge of a department or minister and take no part in cabinet.

Slide 42 · Constitutional Law, Cyber Law and Professional Ethics

- Article 102(2) and Article 191(2) provides for Anti-Defection laws regarding the members of Lok Sabha. According to this law, a member of a House, belonging to any political party, shall be disqualified as a member of the House on the following basis
- If the person voluntarily gives up his/her membership of the political party to which he/she belongs; or
- If the person votes or abstains from voting in contrary to any direction issued by the political party or by any person or authority authorized to give directions.

Slide 43 · Constitutional Law, Cyber Law and Professional Ethics

- Disqualification on defection on the ground of split in a political party
- In either case, the prior permission of such political party, person or authority must be sought. The voting or abstention must be approved by the political party, person or authority within fifteen days from the date of voting or abstention.
- When a member of a House claims that he and any other members of his party have formed a group representing a faction emerging as a result of a split in his original political party. If such a group consists of one-third or more of the members of such a political party then the ministers cannot be disqualified under Anti-Defection laws.

Slide 44 · Constitutional Law, Cyber Law and Professional Ethics

- The Prime Minister shall be appointed by the President and other Ministers shall be appointed by the President on the advice of the Prime Minister.
- (1A) The total number of Ministers including the Prime Minister, in the Council of Ministers shall not exceed fifteen percent, of the total number of members of the House of the People.
- (1B) A member of either House of Parliament belonging to any political party who is disqualified for being a member of that House under paragraph 2 of the Tenth Schedule shall also be disqualified to be appointed as a Minister under clause (1) for duration of the period commencing from the date of his disqualification till the date on which the term of his office as such member would expire or where he contests any election to either House of Parliament before the expiry of such period, till the date on which he is declared elected whichever is earlier.

Slide 45 · Constitutional Law, Cyber Law and Professional Ethics

- (4) Before a Minister enters upon his office, the President shall administer to him the oaths of office and of secrecy according to the forms set out for the purpose in the Third Schedule.
- (5) A Minister who for any period of six consecutive months is not a member of either House of Parliament shall at the expiration of that period cease to be a Minister.
- (6) The salaries and allowances of Ministers shall be such as Parliament may from time-to-time by law determine and, until Parliament so determines, shall be as specified in the Second Schedule.

Slide 46 · Constitutional Law, Cyber Law and Professional Ethics

- Article 75(3) Our Constitution clearly states that “The Council of Ministers shall be collectively responsible to ‘House of the People”. It means that the Ministers are responsible to the Lok Sabha collectively.
- The essence of collective responsibility is that, ‘the Minister must vote with the government, speak in defense of it if the Prime Minister insists, and he/she cannot afterwards reject criticism of his act, either in Parliament or in the constituencies, on the ground that he/she did not agree with the decision.’ This responsibility has two implications.
- It means that every member of the Council of ministers accepts responsibility for each and every decision of the Cabinet. When a decision has been taken by the Cabinet, every Minister has to stand by it. If a Minister does not agree with the Cabinet decision, the only alternative left to him/her is to resign from the Council of Ministers.

Slide 47 · Constitutional Law, Cyber Law and Professional Ethics

- 2. Also the vote of no-confidence against the Prime Minister is a vote against the whole Council of Ministers. Similarly, adverse vote in the Lok Sabha on any government bill or budget implies lack of confidence in the entire Council of Ministers, not only the mover of the bill.
- Though the Ministers are collectively responsible to the Lok Sabha, they shall be individually responsible to the Head of the State i.e., President.
- However, since the President has to act on the advice of the Prime Minister, in practice, this power is exercised by the Prime Minister. The Prime Minister ask the Minister to resign.

Slide 48 · Constitutional Law, Cyber Law and Professional Ethics

- In order to be a Minister, a person has to be a member of either of the two Houses of Parliament.
- However, even if a person is not a member of any of the two Houses, he can become a Minister for a period of six months.
- Within six months the Minister has to get himself/herself elected to either House of Parliament, failing which he/she ceases to be a Minister.

Slide 49 · Constitutional Law, Cyber Law and Professional Ethics

- In our country, the Lok Sabha has a five-year term but it can be dissolved earlier. Article 83(2) of the Indian Constitution states that at the completion of five years term, from the starting date of Lok Sabha meetings, it can be dissolved. In such cases, an election is held to elect the new Members of Parliament.
- According to 85(b) The Lok Sabha can also be dissolved by the President on the advice of the Prime Minister before the expiry of its term.
- The President can also dissolve the Lok Sabha, if he feels that a viable government cannot be formed, after the resignation or fall of a regime, as the case may be.

Slide 50 · Constitutional Law, Cyber Law and Professional Ethics

- At first, the Prime Minister is appointed by the President and then the President appoints other ministers on the advice of the Prime Minister.
- The provision clearly states that any minister, who is not a member of either House of the Parliament, shall cease to be a minister after the period of six months from the date of his appointment.
- The non-member must get elected to either House of the Parliament in order to continue as a Minister of Lok Sabha.

Slide 51 · Constitutional Law, Cyber Law and Professional Ethics

- A convicted person cannot be appointed Chief Minister
- When the question arose whether a convicted can be appointed as Chief Minister or not.
- The issue was decided in the negative by the Supreme Court in the famous case known as Ms. J. Jayalalitha Case. It was held that any person who is convicted for a criminal offence and sentenced to imprisonment, for a period of two years, or more, cannot be appointed the Chief Minister of any State under Article 164(1) of the Indian Constitution.

Slide 52 · Constitutional Law, Cyber Law and Professional Ethics

- The state executive is made up of the Governor, Chief Minister, Council of Ministers, and Advocate-General of State.
- The Constitution of India by article 153, creates the office of the Governor. Thus each State shall have a Governor. The executive power of the State is vested in the Governor.
- Governor: constitutional - union government nominates Governor in each state.

Slide 53 · Constitutional Law, Cyber Law and Professional Ethics

- must be a citizen of India; and
- Must not belong to the state where he is appointed and
- Consult the Chief Minister of the state where to be appointed.

Slide 54 · Constitutional Law, Cyber Law and Professional Ethics

- The Governor must not be a member of either House of Parliament and House of the Legislature of any State.
- The salary and allowances of the Governor cannot be reduced during his term of office [article 158(4)].
- The Governor is required to take an oath or affirmation in the presence of the Chief Justice of the High Court or if he is not present, in the presence of the senior-most Judge of the High Court.[Article 159]

Slide 55 · Constitutional Law, Cyber Law and Professional Ethics

- How can the Governor be removed from his office? Tenure and removal (A.156)
- Subject to the foregoing provisions of this Article, a Governor shall hold office for a term of five years from the date on which he enters upon his office.
- Provided that a Governor shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon his office.

Slide 56 · State Executive- Governor's powers and functions

- He appoints the Chief Minister and on his advice the other Minister.
- He also appoints the Advocate- General of the State and the members of the State Public Service Commission.
- He also appoints the State Election Commission (Article 243K) and the State Finance Commission (Article 243K).

Slide 57 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- The leader of the political party that gets the majority of the votes - appointed as the Chief Minister of the state.
- In case, no party gets a majority - Governor gets to use his discretion and appoint a Chief Minister.

Slide 58 · Constitutional Law, Cyber Law and Professional Ethics

- State Executive- Chief Minister and Council of Ministers
- Criteria : 1) 25 years minimum age and
- The Chief Minister can reconstruct his Ministry and the right to demand the resignation of any of the ministers under him.

Slide 59 · Leader of the House- Makes all the announcements concerning the new or amended policies.

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Aids and Advises the Governor- The decisions of the council of ministers are communicated to the governor by the Chief Minister.

Slide 60 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 61 · 91st Amendment, 2003

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Article 163(1) says that there shall be a Council of Ministers with the Chief Minster as the head to "aid and advise" the Governor in exercise of his functions. The Council of Ministers in the States is constituted and functions in the same way as the Cabinet.
- This amendment has added two new clauses 1A and 1B to article 164 of the Constitution. The amendment makes two important changes.

Slide 62 · Maximum size of Ministers

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- The new clause (1A) puts a maximum limit of number of Ministers to be appointed to the Council of Ministers. It provides that the total number of Ministers, including the Chief Minister in the Council of Ministers in a State shall not exceed 15 percent of the total number of members of the Legislative Assembly of that State provided that the number of Ministers, including the Chief Minister in a State, shall not be less than 12 for smaller States. In those States where the total number of Ministers is more than 15% at the time of the commencement of the 91st Amendment Act, 2003 it shall be reduced to 15 percent with 6 months from the date on which the President notifies the date for application of the amendment.

Slide 63 · Disqualification on ground of defection

- The new clause (1B) provides that where the 1/3 members of the original political party defect from the party their membership of the legislature will automatically come to an end. Such a member cannot be appointed as a Minister.
- In general, the relation between the Governor and his Ministers is the same as that between the President and his Ministers, with this important difference that while the Constitution

does not empower the President to exercise any function it authorises the Governor to exercise some function 'in his discretion'.
- Article 163 says that there shall be a Council of Ministers with the Chief Minister as the head to aid and advice the Governor. The exercise of his functions, except insofar as he is by or under the Constitution required to exercise his functions on his discretion.

Slide 64 · In the following circumstances the Governor will be called upon to exercise his discretion

- Appointment of the Chief Minister,
- the dismissing of a Minister,
- advising the President for the proclamation of an emergency under article 356 of the Constitution.

Slide 65 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- To Aid and Advice the Governor: The Chief Minister is the link between the Cabinet and the Governor. It is he who communicates to the Governor all decisions of the Council of Ministers. He has to furnish such information relating to the administration of the State as the Governor may call for.
- 2. The Chief Minister is at the Head of the Council of Ministers: As Head of the State Cabinet, the Chief Minister enjoys the following powers:

Slide 66 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- i) Formation of the Ministry: The other Ministers are appointed by the Governor on the advice of the Chief Minister. The Chief Minister has a free hand in preparing the list of his colleagues. The Governor may suggest the names of the persons to be included in the Ministry, but he cannot insist upon any person to be included in the Ministry. Assigning departments or portfolios to the Ministers is done by the Governor on the advice of the CM. The CM can allocate and reshuffles portfolios among ministers.

Slide 67 · The powers and functions of Chief Minister are as follows:

- Other than this the CM has the following important powers;
- The activities of all ministers are coordinated, guided and controlled by the chief minister.
- If the chief minister resigns that the government also collapses.

Slide 68 · The powers and functions of Chief Minister are as follows:

- Constitutional Law, Cyber Law and Professional Ethics State Executive- Chief Minister and Council of Ministers
- Other than this the CM has the following important powers;

- 10. Member of the Inter State Council and the National Development Council both headed by the prime minister.

Slide 69 · Constitutional Law, Cyber Law and Professional Ethics

- Indian Parliament consists of Lok Sabha [The House of the People], Rajya Sabha[The council of States], and the President of India.
- At the state level, the legislature is composed of the Legislative Assembly [Vidhana Sabha-lower house] and Legislative Council [Vidhana Parishad- upper house] and the Governor of the State.
- Constitution of the Parliament : India has chosen the parliamentary form of government with the head of the state as an elected person. Therefore, it is a Parliamentary republic.

Slide 70 · Constitutional Law, Cyber Law and Professional Ethics

- Though the practice of Bicameralism is a practice that was followed in the UK, India chose to follow the pattern that was followed by the USA. In the UK the two houses are the House of Lords and the House of Commons in which the House of Lords is a body that represents the nobility (referred to as peerage) who contributed to the stability in the UK when there was a monarchy and subsequently. Peerages are either inherited or otherwise they are enjoyed for life. The House of Commons consists of elected representatives from territorial constituencies.
- In the USA, both the Senate and the House of Representatives consist of elected members only.
- The Parliament is constituted under article 79 to include the President, the Council of States (Rajya Sabha) and the House of the People (Lok Sabha).

Slide 71 · Constitutional Law, Cyber Law and Professional Ethics

- According to Article 170, there should be a Legislative Assembly - can have at most 500 constituencies and at least 60 constituencies.
- These constituencies would be represented by the members who would be selected through the process of direct election.
- Article 171: The total members in the Legislative Council should not exceed one-third of the total members in the state Legislative Assembly. Elected from the district boards, municipalities and other local authorities which is specified by the Parliament according to law.

Slide 72 · Constitutional Law, Cyber Law and Professional Ethics

- Qualifications of Membership: Article 173:
- Must be a citizen of India.
- The member of the Legislative Assembly should be more than 25 years. For being a member of the Legislative Council one should be more than 30 years.

Slide 73 · Constitutional Law, Cyber Law and Professional Ethics

- Office of profit under the state or central government.

- Disqualified by the law of the Parliament.

Slide 74 · Constitutional Law, Cyber Law and Professional Ethics

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8 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0001067 · EV0001068

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Among the noble aims and objectives of the constitution, the founding fathers accorded the highest place to ‘justice’. The preamble speaks of “we the people of India” resolving to secure “Justice- social, economic & political” to “all its citizens”.
- The juxta position of words and concepts in the preamble is important “Justice’ is placed higher than the other principles of ‘Liberty’, Equality and Fraternity. Again, the preamble clearly enjoins precedence to social and economic justice over political justice.
- The constitution lays down the structure, appointment, transfer and removal of judges and denies, delimits and demarcates the role and functions of every organ of the state including the judiciary. By all these, independence of judiciary is established.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- The Union Judiciary (Articles 124-147): Supreme Court stands at the Apex
- Establishment and Constitution of Supreme Court: There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other Judges (now increased to 30)
- Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose and shall hold office until he attains the age of sixty- five years

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- Hold office – Till the age of sixty-five years:
- has been for at least five years a Judge of a High Court or of two or more such Courts in succession
- has been for at least ten years an advocate of a High Court or of two or more such courts in succession

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- Apart from the above mentioned qualifications expressly prescribed by the Constitution, the implied qualifications required are: unimpeachable character and integrity; impartiality, independence; equanimity; incorruptibility.
- As stated under Art.124 (2), a judge of the Supreme court shall hold an office until he attains the age of sixty-five years. He may resign before the age of retirement by addressing his letter of resignation to the president.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- Supported by a majority two-thirds of the members of the House present and voting
- V. Ramaswami J was the first judge against whom impeachment proceedings were initiated. In 1993, the motion was brought up in Lok Sabha but failed to secure the required two-thirds majority.
- Soumitra Sen J of the Calcutta High Court resigned in 2011 after the Rajya Sabha passed an impeachment motion against him. He was the first judge to have been impeached by the Upper House for misconduct.

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- In 2015, 58 members of the Rajya Sabha moved an impeachment notice against J.B. Pardiwala J of the Gujarat High Court for his "objectionable remarks on the issue of reservation."
- In 2017, Rajya Sabha MPs moved a motion to initiate impeachment proceedings against C.V. Nagarjuna Reddy J of the High Court for Andhra Pradesh and Telangana.
- In March 2018, opposition parties signed a draft proposal for moving an impeachment motion against Dipak Misra CJI.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- The jurisdiction of the Supreme Court under the constitution is vast. It is the apex court of appeal in respect of all the matters. The apex court is conferred with the following powers Power to Enforce Fundamental Rights (Art.32):
- (2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- (3) Without prejudice to the powers conferred on the Supreme Court by clause (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).
- 4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- Article 129: Supreme Court to be Court of Record : - Power to punish for contempt of itself.
- 1) Power to determine its own jurisdiction and
- Article 32: Enforcement of Fundamental Rights:. Under article 32 every citizen has a right to move the Supreme Court for the enforcement of the Fundamental Rights.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- The Supreme Court has got original and exclusive jurisdiction in any dispute
- between the Government of India and any State or States on one side and one or more other States on the other, or
- Only if High court certifies that there is substantive question of law with respect to Constitution of India.

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- Article 134: Appellate jurisdiction of Supreme Court in regard to criminal matters: If the High Court
- has on appeal reversed an order of acquittal of an accused person and sentenced him to death
- has withdrawn for trial before itself any case from any court subordinate to its authority and has in such trial convicted the accused person and sentenced him to death

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 136: Special leave to appeal by the Supreme Court: The Supreme Court - in its discretion grant special leave to appeal from any judgment, decree, determination, sentence or order in any matter passed by any court or tribunal in the territory of India.
- (a) discovery of new and important matter of evidence,
- Article 141. Law declared by the Supreme Court to be binding on all courts: The law declared by the Supreme Court shall be binding on all courts within the territory of India.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- Advisory jurisdiction Article 143 - Power of President to consult Supreme Court
- If at any time it appears to the President that a question of law or fact has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration and the Court may, after such hearing as it thinks fit, report to the President its opinion thereon.

- Such advisory opinion of the Supreme Court may be rendered at the instance of the president of India which may enable parliament to pass appropriate legislation or to introspect and effect suitable amendments to the existing law.

Slide 15 · State Judiciary

- Normally there is one High Court in every State but there can be only one High Court for two or more States as well according to the constitution.
- In every High Court, there is a Chief Justice and many other judges whose number is defined by the President of India.
- The Chief Justice of a High Court is appointed by the President with the consultation of the Chief Justice of the Supreme Court and the Governor of the State.

Slide 16 · State Judiciary

- Every High Court has the power to issue writs of habeus corpus, mandamus, prohibition, quo-warranto and certiorari for the enforcement of Fundamental Rights or for other purpose.
- The High Court is consulted by the Governor in the appointment, posting and promotion of District Judges. It is also consulted in the appointment of other members of the State Judicial Service.
- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.

Slide 17 · State Judiciary

- Holding a judicial office for not less than 10 years in a territory of India,
- An advocate of the High Court for at least 10 years in succession.
- The judges and the Chief Justice of the High Courts are appointed officially by the President.

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- The Chief Justice - appointed by the President in consultation with Chief Justice of India and Governor.
- If he wants to resign, he can resign by writing to the president
- A High Court judge after retirement can practice either in Supreme or High Court in which he has not served.

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- State Judiciary- Oath and Removal
- Every person appointed to be a Judge of a High Court shall, before he enters upon his office, make and subscribe before the Governor of the State, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.
- The judge is called upon to take oath according to Article 219 wherein he is required to bear true faith and allegiance to the Constitution. Also the judge is bound to perform the duties

unbiased, in good will and without favouritism. The oath propagates that the judge shall uphold the Constitution and the laws.

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- State Judiciary- Oath and Removal
- A motion to remove the judge of HC can be introduced in any house of parliament. It must be introduced by at least 100 members in Lok sabha or 50 members in Rajya Sabha whenever it is introduced.
- When the committee finds him guilty, then the motion has to be passed by both houses by a special majority. Then, the President gives his assent and Judge of HC is removed.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

- The High Court is consulted by the Governor in the appointment, posting and promotion of District Judges. It is also consulted in the appointment of other members of the State Judicial Service.
- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.
- High Court has original and appellate jurisdiction in civil and criminal matters as conferred by the Codes of Civil and Criminal Procedure and the Letters of Patent.

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Article 226 : Power of High Courts to issue certain writs
- Article 226 also enables the High Courts to issue to any person or authority, any government, orders or writs in the nature of

Slide 23 · Constitutional Law, Cyber Law and Professional Ethics

- Image-only source page; see the visual page locator in `datasets/content-index.json`.

Slide 24 · EMERGENCY (ARTICLE 352 to 360)

- A novel feature of the Indian Constitution is the way in which the normal peace-time federalism, can be adopted to an emergency situation. The framers of the Constitution felt that, in an emergency, the Centre should have overriding powers to control and direct all aspects of administration and legislation throughout the country.
- The Indian Constitution envisages three types of emergencies
- Emergency arising from a threat to security of India or any part of its territory;

Slide 25 · EMERGENCY (ARTICLE 352 to 360)

- It occurs whenever there is imbalance within the Country, whether wholly or partly.
- Ultimate aim of government is to secure good life & safe life to its citizen .
- If we analyse the ex 1, 2 & 3"emergency in all the cases. The social equilibrium of the country was imbalanced and security of the citizen was on the threat.

Slide 26 · EMERGENCY (ARTICLE 352 to 360)

- National Emergency (352): If the President is satisfied that a grave emergency exists whereby the security of India or any part of its territory is threatened by war, external aggression or armed rebellion, he may proclaim a state of emergency under Article 352.
- If not, it shall be laid before both Houses of Parliament. If Parliament does not approve of it within one month, it will become invalid.
- So far, there have been three occasions when emergency of the first category was proclaimed by the President: 1962 (Chinese aggression), 1971 (Indo-Pakistan war before the formation of Bangladesh) and 1975 (internal emergency).

Slide 27 · EMERGENCY (ARTICLE 352 to 360)

- State Emergency (356): If the President is satisfied on receipt of a report from the Governor or otherwise that a situation has arisen in which the Government of a State cannot be carried on in accordance with the provisions of the Constitution, he can proclaim an emergency under Article 356 and 365.
- He may assume to himself all or any of the functions of the State or he may vest all or any of those functions in the Governor or any other executive authority; or
- he may make any other incidental or consequential provisions necessary to give effect to the objects of the Proclamation

Slide 28 · EMERGENCY (ARTICLE 352 to 360)

- The proclamation may be revoked subsequently; if not, it shall be laid before both Houses of Parliament, if Parliament does not approve of it within two months, it will become ineffective.
- During the period of emergency, - the State is empowered to suspend the Fundamental Rights guaranteed under Article 19 of the Indian Constitution.

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- Financial Emergency (ARTICLE 360): If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or any part of it is threatened, he may declare a financial emergency under Article 360. The proclamation in this case also should be approved by Parliament as in the other two cases of emergency.
- When such a proclamation is in operation, the centre can give directions to any State to observe such canons of financial propriety as may be specified in the directions. It may also give such other directions as the President may deem necessary and adequate for the purpose. Any such directions may provide for the reduction of salaries and allowances of all or any class of persons serving in the State.

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- The 44th Amendment makes article 360 self-contained. It provides that the proclamation of financial emergency will cease to be in operation at the expiry of two months unless it has been approved by both Houses of Parliament. Such a proclamation may be revoked or varied

by the President by a subsequent proclamation. But if the Lok Sabha is dissolved during the period of two months and resolution is approved by the Rajya Sabha, but not by the Lok Sabha the proclamation shall cease to operate at the expiry of 30 days from the date on which the new Lok Sabha sits unless before the expiry of 30 days a resolution approving proclamation is passed by the Lok Sabha.
- The duration of a proclamation of financial emergency will be in operation for two months and unless approved by President it shall cease to operate at the expiry of two months' period.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- AMENDMENT OF CONSTITUTION OF INDIA

Slide 32 · AMENDMENT OF CONSTITUTION

- The Indian Constitution came into force on 26th January 1950. The provisions of the constitution were so designed to meet the social, economic conditions prevailing at that time. To meet the changing conditions, there shall be an appropriate mechanism to alter the provisions of the constitution. Such mechanism is called the “Amendment of the Constitution”.
- Amendment of the Constitution is done under Article 368
- An amendment to the Constitution of India may be allowed by the introduction of a Bill for the purpose in either House of the Parliament (Lok Sabha or Rajya Sabha). The bill has to be passed in each house by a majority, which is more than 50% of the total membership of that House and by a majority of not less than two-thirds of the members of the House present and voting.

Slide 33 · AMENDMENT OF CONSTITUTION

- After acquiring the majority, the Bill is presented to the President who will then give his assent to the Bill.
- In the case of amendment of provisions mentioned in Article 368, It needs to be ratified by not less than half of the states. Ratification should be done by a resolution passed by the state legislature.
- Basic Structure: The Basic Structure Doctrine states there are certain fundamental structures and founding principles of the constitution which make the backbone of the constitution. In simple terms, they are ideologies of the constitution which are essential for the survival of the constitution

Slide 34 · AMENDMENT OF CONSTITUTION

- Shankari Prasad v. Union of India (AIR 1951 SC 455) was the first time when the question of whether Fundamental Rights enshrined under Part III of the Constitution of India, can be amended under Article 368. The Five Judge Bench had stated, Article 368 provides for general and strict power to the Parliament of India to amend the Constitution.

Slide 35 · AMENDMENT OF CONSTITUTION

- Golaknath v. State of Punjab (1967 AIR 1643) was the case where three amendments, namely, the first, fourth, and seventeenth amendments, were challenged. The bench had eleven judges out of which the majority six-judge bench held that Part 3 of the Constitution (Fundamental Rights) could not be amended by the Parliament of India.
- Keshvananda Bharati v. Union of India (1973) 4 SCC 225) was a landmark case where for the first time, the Supreme Court brought in the doctrine of Basic Structure. The court overruled the judgment of the Golaknath case, The apex court held that article 368 of the Constitution does not empower the Parliament to change, damage, or alter the basic structure of the Constitution of India. The Preamble is actually the basic structure of the Constitution of India.

Slide 36 · AMENDMENT OF CONSTITUTION

- 42nd Amendment to the Constitution of India added the words “secular” and “socialist” to the Constitution of India and added clause 4 and 5 to Article 368. This amendment recognized the ultimate power of the Parliament in amending the Constitution of India even after the Supreme Court judgments of Keshvananda Bharati and Raj Narayan.

Slide 37 · Recent Trends and Constitutional Development

- Recent trends in India's constitutional development show the basic structure doctrine is increasingly important for protecting core constitutional principles from amendment.
- The Supreme Court, establishing this doctrine in the Kesavanada Bharati (1973), acts to safeguard foundational aspects like Constitutional Supremacy, rule of law, judicial review and Secularism though the exact boundaries remain subject to judicial interpretation and debate. This ongoing evolution highlights the tension between adapting to societal changes and preserving the Indian Constitution’s enduring integrity.

Slide 38 · Recent Trends and Constitutional Development

- The doctrine acts as a legal shield, preventing Parliament from altering the Constitution's fundamental features.
- The Supreme Court can review and strike down constitutional amendments that violate the Constitution's basic structure.
- Commonly accepted elements of the basic structure include constitutional supremacy, rule of law, judicial review, separation of powers, federalism, secularism, and the protection of fundamental rights.

Slide 39 · Recent Trends and Constitutional Development

- The doctrine continues to be applied by the Supreme Court, with judgments often debating the scope of what constitutes the "basic structure".
- There is an ongoing need for the Constitution to adapt to changing societal needs while maintaining its core values and principles.
- While the doctrine is widely accepted, its applicability to ordinary legislation (not just amendments) and the precise definition of its components are subjects of ongoing legal discussion.

Slide 40 · Recent Trends and Constitutional Development

- The basic structure doctrine serves to protect the democratic foundations of the Indian Constitution from potential abuse of power.
- By preserving the Constitution's fundamental integrity, the doctrine contributes to the stability of the Indian legal and political landscape.
- The doctrine has profoundly influenced Indian constitutional law, acting as a "most potent tool" for maintaining checks and balances within the democratic system

Slide 41 · Abrogation of Article 370

- Article 370 gave special status to Jammu & Kashmir.
- After repealing Article 370, he entire Indian Constitution extended to Jammu and Kashmir.
- The Supreme Court (2023 judgment) upheld the abrogation, stating that federalism in India is asymmetric and Parliament acted within its powers.

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9 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0001193 · EV0001194

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

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Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Among the noble aims and objectives of the constitution, the founding fathers accorded the highest place to ‘justice’. The preamble speaks of “we the people of India” resolving to secure “Justice- social, economic & political” to “all its citizens”.
- The juxta position of words and concepts in the preamble is important “Justice’ is placed higher than the other principles of ‘Liberty’, Equality and Fraternity. Again, the preamble clearly enjoins precedence to social and economic justice over political justice.

- The constitution lays down the structure, appointment, transfer and removal of judges and denies, delimits and demarcates the role and functions of every organ of the state including the judiciary. By all these, independence of judiciary is established.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- The Union Judiciary (Articles 124-147): Supreme Court stands at the Apex
- Establishment and Constitution of Supreme Court: There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other Judges (now increased to 30)
- Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose and shall hold office until he attains the age of sixty- five years

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- Hold office – Till the age of sixty-five years:
- has been for at least five years a Judge of a High Court or of two or more such Courts in succession
- has been for at least ten years an advocate of a High Court or of two or more such courts in succession

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- Apart from the above mentioned qualifications expressly prescribed by the Constitution, the implied qualifications required are: unimpeachable character and integrity; impartiality, independence; equanimity; incorruptibility.
- As stated under Art.124 (2), a judge of the Supreme court shall hold an office until he attains the age of sixty-five years. He may resign before the age of retirement by addressing his letter of resignation to the president.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- Supported by a majority two-thirds of the members of the House present and voting
- V. Ramaswami J was the first judge against whom impeachment proceedings were initiated. In 1993, the motion was brought up in Lok Sabha but failed to secure the required two-thirds majority.
- Soumitra Sen J of the Calcutta High Court resigned in 2011 after the Rajya Sabha passed an impeachment motion against him. He was the first judge to have been impeached by the Upper House for misconduct.

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- In 2015, 58 members of the Rajya Sabha moved an impeachment notice against J.B. Pardiwala J of the Gujarat High Court for his “objectionable remarks on the issue of reservation.”

- In 2017, Rajya Sabha MPs moved a motion to initiate impeachment proceedings against C.V. Nagarjuna Reddy J of the High Court for Andhra Pradesh and Telangana.
- In March 2018, opposition parties signed a draft proposal for moving an impeachment motion against Dipak Misra CJI.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- The jurisdiction of the Supreme Court under the constitution is vast. It is the apex court of appeal in respect of all the matters. The apex court is conferred with the following powers Power to Enforce Fundamental Rights (Art.32):
- (2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- (3) Without prejudice to the powers conferred on the Supreme Court by clause (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).
- 4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- Article 129: Supreme Court to be Court of Record : - Power to punish for contempt of itself.
- 1) Power to determine its own jurisdiction and
- Article 32: Enforcement of Fundamental Rights:. Under article 32 every citizen has a right to move the Supreme Court for the enforcement of the Fundamental Rights.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- The Supreme Court has got original and exclusive jurisdiction in any dispute
- between the Government of India and any State or States on one side and one or more other States on the other, or
- Only if High court certifies that there is substantive question of law with respect to Constitution of India.

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- Article 134: Appellate jurisdiction of Supreme Court in regard to criminal matters: If the High Court
- has on appeal reversed an order of acquittal of an accused person and sentenced him to death
- has withdrawn for trial before itself any case from any court subordinate to its authority and has in such trial convicted the accused person and sentenced him to death

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 136: Special leave to appeal by the Supreme Court: The Supreme Court - in its discretion grant special leave to appeal from any judgment, decree, determination, sentence or order in any matter passed by any court or tribunal in the territory of India.
- (a) discovery of new and important matter of evidence,
- Article 141. Law declared by the Supreme Court to be binding on all courts: The law declared by the Supreme Court shall be binding on all courts within the territory of India.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- Advisory jurisdiction Article 143 - Power of President to consult Supreme Court
- If at any time it appears to the President that a question of law or fact has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration and the Court may, after such hearing as it thinks fit, report to the President its opinion thereon.
- Such advisory opinion of the Supreme Court may be rendered at the instance of the president of India which may enable parliament to pass appropriate legislation or to introspect and effect suitable amendments to the existing law.

Slide 15 · State Judiciary

- Normally there is one High Court in every State but there can be only one High Court for two or more States as well according to the constitution.
- In every High Court, there is a Chief Justice and many other judges whose number is defined by the President of India.
- The Chief Justice of a High Court is appointed by the President with the consultation of the Chief Justice of the Supreme Court and the Governor of the State.

Slide 16 · State Judiciary

- Every High Court has the power to issue writs of habeus corpus, mandamus, prohibition, quo-warranto and certiorari for the enforcement of Fundamental Rights or for other purpose.
- The High Court is consulted by the Governor in the appointment, posting and promotion of District Judges. It is also consulted in the appointment of other members of the State Judicial Service.
- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.

Slide 17 · State Judiciary

- Holding a judicial office for not less than 10 years in a territory of India,
- An advocate of the High Court for at least 10 years in succession.
- The judges and the Chief Justice of the High Courts are appointed officially by the President.

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- The Chief Justice - appointed by the President in consultation with Chief Justice of India and Governor.
- If he wants to resign, he can resign by writing to the president
- A High Court judge after retirement can practice either in Supreme or High Court in which he has not served.

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- State Judiciary- Oath and Removal
- Every person appointed to be a Judge of a High Court shall, before he enters upon his office, make and subscribe before the Governor of the State, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.
- The judge is called upon to take oath according to Article 219 wherein he is required to bear true faith and allegiance to the Constitution. Also the judge is bound to perform the duties unbiased, in good will and without favouritism. The oath propagates that the judge shall uphold the Constitution and the laws.

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- State Judiciary- Oath and Removal
- A motion to remove the judge of HC can be introduced in any house of parliament. It must be introduced by at least 100 members in Lok sabha or 50 members in Rajya Sabha whenever it is introduced.
- When the committee finds him guilty, then the motion has to be passed by both houses by a special majority. Then, the President gives his assent and Judge of HC is removed.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

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- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.
- High Court has original and appellate jurisdiction in civil and criminal matters as conferred by the Codes of Civil and Criminal Procedure and the Letters of Patent.

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Article 226 : Power of High Courts to issue certain writs
- Article 226 also enables the High Courts to issue to any person or authority, any government, orders or writs in the nature of

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Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

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Slide 33 · AMENDMENT OF CONSTITUTION

- After acquiring the majority, the Bill is presented to the President who will then give his assent to the Bill.
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EV0001193 · EV0001194 · EV0001195 · +123 source units in pack.json

10 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0001319 · EV0001320

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- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- (3) Without prejudice to the powers conferred on the Supreme Court by clause (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).
- 4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- Article 129: Supreme Court to be Court of Record : - Power to punish for contempt of itself.
- 1) Power to determine its own jurisdiction and

- Article 32: Enforcement of Fundamental Rights:. Under article 32 every citizen has a right to move the Supreme Court for the enforcement of the Fundamental Rights.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- The Supreme Court has got original and exclusive jurisdiction in any dispute
- between the Government of India and any State or States on one side and one or more other States on the other, or
- Only if High court certifies that there is substantive question of law with respect to Constitution of India.

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- Article 134: Appellate jurisdiction of Supreme Court in regard to criminal matters: If the High Court
- has on appeal reversed an order of acquittal of an accused person and sentenced him to death
- has withdrawn for trial before itself any case from any court subordinate to its authority and has in such trial convicted the accused person and sentenced him to death

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 136: Special leave to appeal by the Supreme Court: The Supreme Court - in its discretion grant special leave to appeal from any judgment, decree, determination, sentence or order in any matter passed by any court or tribunal in the territory of India.
- (a) discovery of new and important matter of evidence,
- Article 141. Law declared by the Supreme Court to be binding on all courts: The law declared by the Supreme Court shall be binding on all courts within the territory of India.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- Advisory jurisdiction Article 143 - Power of President to consult Supreme Court
- If at any time it appears to the President that a question of law or fact has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration and the Court may, after such hearing as it thinks fit, report to the President its opinion thereon.
- Such advisory opinion of the Supreme Court may be rendered at the instance of the president of India which may enable parliament to pass appropriate legislation or to introspect and effect suitable amendments to the existing law.

Slide 15 · State Judiciary

- Normally there is one High Court in every State but there can be only one High Court for two or more States as well according to the constitution.
- In every High Court, there is a Chief Justice and many other judges whose number is defined by the President of India.

- The Chief Justice of a High Court is appointed by the President with the consultation of the Chief Justice of the Supreme Court and the Governor of the State.

Slide 16 · State Judiciary

- Every High Court has the power to issue writs of habeus corpus, mandamus, prohibition, quo-warranto and certiorari for the enforcement of Fundamental Rights or for other purpose.
- The High Court is consulted by the Governor in the appointment, posting and promotion of District Judges. It is also consulted in the appointment of other members of the State Judicial Service.
- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.

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- Holding a judicial office for not less than 10 years in a territory of India,
- An advocate of the High Court for at least 10 years in succession.
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Slide 24 · EMERGENCY (ARTICLE 352 to 360)

- A novel feature of the Indian Constitution is the way in which the normal peace-time federalism, can be adopted to an emergency situation. The framers of the Constitution felt that, in an emergency, the Centre should have overriding powers to control and direct all aspects of administration and legislation throughout the country.
- The Indian Constitution envisages three types of emergencies
- Emergency arising from a threat to security of India or any part of its territory;

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- It occurs whenever there is imbalance within the Country, whether wholly or partly.
- Ultimate aim of government is to secure good life & safe life to its citizen .
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- National Emergency (352): If the President is satisfied that a grave emergency exists whereby the security of India or any part of its territory is threatened by war, external aggression or armed rebellion, he may proclaim a state of emergency under Article 352.
- If not, it shall be laid before both Houses of Parliament. If Parliament does not approve of it within one month, it will become invalid.

- So far, there have been three occasions when emergency of the first category was proclaimed by the President: 1962 (Chinese aggression), 1971 (Indo-Pakistan war before the formation of Bangladesh) and 1975 (internal emergency).

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- State Emergency (356): If the President is satisfied on receipt of a report from the Governor or otherwise that a situation has arisen in which the Government of a State cannot be carried on in accordance with the provisions of the Constitution, he can proclaim an emergency under Article 356 and 365.
- He may assume to himself all or any of the functions of the State or he may vest all or any of those functions in the Governor or any other executive authority; or
- he may make any other incidental or consequential provisions necessary to give effect to the objects of the Proclamation

Slide 28 · EMERGENCY (ARTICLE 352 to 360)

- The proclamation may be revoked subsequently; if not, it shall be laid before both Houses of Parliament, if Parliament does not approve of it within two months, it will become ineffective.
- During the period of emergency, - the State is empowered to suspend the Fundamental Rights guaranteed under Article 19 of the Indian Constitution.

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- Financial Emergency (ARTICLE 360): If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or any part of it is threatened, he may declare a financial emergency under Article 360. The proclamation in this case also should be approved by Parliament as in the other two cases of emergency.
- When such a proclamation is in operation, the centre can give directions to any State to observe such canons of financial propriety as may be specified in the directions. It may also give such other directions as the President may deem necessary and adequate for the purpose. Any such directions may provide for the reduction of salaries and allowances of all or any class of persons serving in the State.

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- The 44th Amendment makes article 360 self-contained. It provides that the proclamation of financial emergency will cease to be in operation at the expiry of two months unless it has been approved by both Houses of Parliament. Such a proclamation may be revoked or varied by the President by a subsequent proclamation. But if the Lok Sabha is dissolved during the period of two months and resolution is approved by the Rajya Sabha, but not by the Lok Sabha the proclamation shall cease to operate at the expiry of 30 days from the date on which the new Lok Sabha sits unless before the expiry of 30 days a resolution approving proclamation is passed by the Lok Sabha.
- The duration of a proclamation of financial emergency will be in operation for two months and unless approved by President it shall cease to operate at the expiry of two months'

period.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- AMENDMENT OF CONSTITUTION OF INDIA

Slide 32 · AMENDMENT OF CONSTITUTION

- The Indian Constitution came into force on 26th January 1950. The provisions of the constitution were so designed to meet the social, economic conditions prevailing at that time. To meet the changing conditions, there shall be an appropriate mechanism to alter the provisions of the constitution. Such mechanism is called the "Amendment of the Constitution".
- Amendment of the Constitution is done under Article 368
- An amendment to the Constitution of India may be allowed by the introduction of a Bill for the purpose in either House of the Parliament (Lok Sabha or Rajya Sabha). The bill has to be passed in each house by a majority, which is more than 50% of the total membership of that House and by a majority of not less than two-thirds of the members of the House present and voting.

Slide 33 · AMENDMENT OF CONSTITUTION

- After acquiring the majority, the Bill is presented to the President who will then give his assent to the Bill.
- In the case of amendment of provisions mentioned in Article 368, It needs to be ratified by not less than half of the states. Ratification should be done by a resolution passed by the state legislature.
- Basic Structure: The Basic Structure Doctrine states there are certain fundamental structures and founding principles of the constitution which make the backbone of the constitution. In simple terms, they are ideologies of the constitution which are essential for the survival of the constitution

Slide 34 · AMENDMENT OF CONSTITUTION

- Shankari Prasad v. Union of India (AIR 1951 SC 455) was the first time when the question of whether Fundamental Rights enshrined under Part III of the Constitution of India, can be amended under Article 368. The Five Judge Bench had stated, Article 368 provides for general and strict power to the Parliament of India to amend the Constitution.

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- Golaknath v. State of Punjab (1967 AIR 1643) was the case where three amendments, namely, the first, fourth, and seventeenth amendments, were challenged. The bench had eleven judges out of which the majority six-judge bench held that Part 3 of the Constitution (Fundamental Rights) could not be amended by the Parliament of India.
- Keshvananda Bharati v. Union of India (1973) 4 SCC 225) was a landmark case where for the first time, the Supreme Court brought in the doctrine of Basic Structure. The court overruled the judgment of the Golaknath case, The apex court held that article 368 of the

Constitution does not empower the Parliament to change, damage, or alter the basic structure of the Constitution of India. The Preamble is actually the basic structure of the Constitution of India.

Slide 36 · AMENDMENT OF CONSTITUTION

- 42nd Amendment to the Constitution of India added the words “secular” and “socialist” to the Constitution of India and added clause 4 and 5 to Article 368. This amendment recognized the ultimate power of the Parliament in amending the Constitution of India even after the Supreme Court judgments of Keshvananda Bharati and Raj Narayan.

Slide 37 · Recent Trends and Constitutional Development

- Recent trends in India's constitutional development show the basic structure doctrine is increasingly important for protecting core constitutional principles from amendment.
- The Supreme Court, establishing this doctrine in the Kesavanada Bharati (1973), acts to safeguard foundational aspects like Constitutional Supremacy, rule of law, judicial review and Secularism though the exact boundaries remain subject to judicial interpretation and debate. This ongoing evolution highlights the tension between adapting to societal changes and preserving the Indian Constitution’s enduring integrity.

Slide 38 · Recent Trends and Constitutional Development

- The doctrine acts as a legal shield, preventing Parliament from altering the Constitution's fundamental features.
- The Supreme Court can review and strike down constitutional amendments that violate the Constitution's basic structure.
- Commonly accepted elements of the basic structure include constitutional supremacy, rule of law, judicial review, separation of powers, federalism, secularism, and the protection of fundamental rights.

Slide 39 · Recent Trends and Constitutional Development

- The doctrine continues to be applied by the Supreme Court, with judgments often debating the scope of what constitutes the "basic structure".
- There is an ongoing need for the Constitution to adapt to changing societal needs while maintaining its core values and principles.
- While the doctrine is widely accepted, its applicability to ordinary legislation (not just amendments) and the precise definition of its components are subjects of ongoing legal discussion.

Slide 40 · Recent Trends and Constitutional Development

- The basic structure doctrine serves to protect the democratic foundations of the Indian Constitution from potential abuse of power.
- By preserving the Constitution's fundamental integrity, the doctrine contributes to the stability of the Indian legal and political landscape.

- The doctrine has profoundly influenced Indian constitutional law, acting as a "most potent tool" for maintaining checks and balances within the democratic system

Slide 41 · Abrogation of Article 370

- Article 370 gave special status to Jammu & Kashmir.
- After repealing Article 370, he entire Indian Constitution extended to Jammu and Kashmir.
- The Supreme Court (2023 judgment) upheld the abrogation, stating that federalism in India is asymmetric and Parliament acted within its powers.

Slide 42 · Constitutional Law, Cyber Law and Professional Ethics

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11 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0001445 · EV0001446

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Among the noble aims and objectives of the constitution, the founding fathers accorded the highest place to ‘justice’. The preamble speaks of “we the people of India” resolving to secure “Justice- social, economic & political” to “all its citizens”.
- The juxta position of words and concepts in the preamble is important “Justice’ is placed higher than the other principles of ‘Liberty’, Equality and Fraternity. Again, the preamble clearly enjoins precedence to social and economic justice over political justice.
- The constitution lays down the structure, appointment, transfer and removal of judges and denies, delimits and demarcates the role and functions of every organ of the state including the judiciary. By all these, independence of judiciary is established.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- The Union Judiciary (Articles 124-147): Supreme Court stands at the Apex

- Establishment and Constitution of Supreme Court: There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other Judges (now increased to 30)
- Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose and shall hold office until he attains the age of sixty- five years

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- Hold office – Till the age of sixty-five years:
- has been for at least five years a Judge of a High Court or of two or more such Courts in succession
- has been for at least ten years an advocate of a High Court or of two or more such courts in succession

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- Apart from the above mentioned qualifications expressly prescribed by the Constitution, the implied qualifications required are: unimpeachable character and integrity; impartiality, independence; equanimity; incorruptibility.
- As stated under Art.124 (2), a judge of the Supreme court shall hold an office until he attains the age of sixty-five years. He may resign before the age of retirement by addressing his letter of resignation to the president.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- Supported by a majority two-thirds of the members of the House present and voting
- V. Ramaswami J was the first judge against whom impeachment proceedings were initiated. In 1993, the motion was brought up in Lok Sabha but failed to secure the required two-thirds majority.
- Soumitra Sen J of the Calcutta High Court resigned in 2011 after the Rajya Sabha passed an impeachment motion against him. He was the first judge to have been impeached by the Upper House for misconduct.

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- In 2015, 58 members of the Rajya Sabha moved an impeachment notice against J.B. Pardiwala J of the Gujarat High Court for his "objectionable remarks on the issue of reservation."
- In 2017, Rajya Sabha MPs moved a motion to initiate impeachment proceedings against C.V. Nagarjuna Reddy J of the High Court for Andhra Pradesh and Telangana.
- In March 2018, opposition parties signed a draft proposal for moving an impeachment motion against Dipak Misra CJI.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT

- The jurisdiction of the Supreme Court under the constitution is vast. It is the apex court of appeal in respect of all the matters. The apex court is conferred with the following powers Power to Enforce Fundamental Rights (Art.32):
- (2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

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- Commonly accepted elements of the basic structure include constitutional supremacy, rule of law, judicial review, separation of powers, federalism, secularism, and the protection of fundamental rights.

Slide 39 · Recent Trends and Constitutional Development

- The doctrine continues to be applied by the Supreme Court, with judgments often debating the scope of what constitutes the "basic structure".
- There is an ongoing need for the Constitution to adapt to changing societal needs while maintaining its core values and principles.
- While the doctrine is widely accepted, its applicability to ordinary legislation (not just amendments) and the precise definition of its components are subjects of ongoing legal discussion.

Slide 40 · Recent Trends and Constitutional Development

- The basic structure doctrine serves to protect the democratic foundations of the Indian Constitution from potential abuse of power.
- By preserving the Constitution's fundamental integrity, the doctrine contributes to the stability of the Indian legal and political landscape.
- The doctrine has profoundly influenced Indian constitutional law, acting as a "most potent tool" for maintaining checks and balances within the democratic system

Slide 41 · Abrogation of Article 370

- Article 370 gave special status to Jammu & Kashmir.
- After repealing Article 370, he entire Indian Constitution extended to Jammu and Kashmir.
- The Supreme Court (2023 judgment) upheld the abrogation, stating that federalism in India is asymmetric and Parliament acted within its powers.

Slide 42 · Constitutional Law, Cyber Law and Professional Ethics

- Image-only source page; see the visual page locator in `datasets/content-index.json`.

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12 Source slide deck: constitution

Study focus: Source slide deck: constitution. The notes identify each page heading, summarize its main ideas, and explain its place in this unit; citations preserve the source page locator. EV0001571 · EV0001572

SHORT-NOTE RECAP

Study notes · Source slide deck: constitution

The slide deck is rewritten here as searchable lesson notes. Each subsection states the slide heading and its concise teaching points; page citations lead back to the indexed source image when visual details are needed.

Slide 1 · [Image text, OCR]

- Constitutional Law, cyber law, ip law and professional ethics

Slide 2 · Constitutional Law, Cyber Law and Professional Ethics

- Among the noble aims and objectives of the constitution, the founding fathers accorded the highest place to 'justice'. The preamble speaks of "we the people of India" resolving to secure "Justice- social, economic & political" to "all its citizens".
- The juxta position of words and concepts in the preamble is important "Justice' is placed higher than the other principles of 'Liberty', Equality and Fraternity. Again, the preamble clearly enjoins precedence to social and economic justice over political justice.
- The constitution lays down the structure, appointment, transfer and removal of judges and denies, delimits and demarcates the role and functions of every organ of the state including the judiciary. By all these, independence of judiciary is established.

Slide 3 · Constitutional Law, Cyber Law and Professional Ethics

- The Union Judiciary (Articles 124-147): Supreme Court stands at the Apex
- Establishment and Constitution of Supreme Court: There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, of not more than seven other Judges (now increased to 30)
- Every Judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary for the purpose and shall hold office until he attains the age of sixty- five years

Slide 4 · Constitutional Law, Cyber Law and Professional Ethics

- Hold office – Till the age of sixty-five years:
- has been for at least five years a Judge of a High Court or of two or more such Courts in succession
- has been for at least ten years an advocate of a High Court or of two or more such courts in succession

Slide 5 · Constitutional Law, Cyber Law and Professional Ethics

- Apart from the above mentioned qualifications expressly prescribed by the Constitution, the implied qualifications required are: unimpeachable character and integrity; impartiality, independence; equanimity; incorruptibility.
- As stated under Art.124 (2), a judge of the Supreme court shall hold an office until he attains the age of sixty-five years. He may resign before the age of retirement by addressing his letter of resignation to the president.

Slide 6 · Constitutional Law, Cyber Law and Professional Ethics

- Supported by a majority two-thirds of the members of the House present and voting
- V. Ramaswami J was the first judge against whom impeachment proceedings were initiated. In 1993, the motion was brought up in Lok Sabha but failed to secure the required two-thirds majority.
- Soumitra Sen J of the Calcutta High Court resigned in 2011 after the Rajya Sabha passed an impeachment motion against him. He was the first judge to have been impeached by the Upper House for misconduct.

Slide 7 · Constitutional Law, Cyber Law and Professional Ethics

- In 2015, 58 members of the Rajya Sabha moved an impeachment notice against J.B. Pardiwala J of the Gujarat High Court for his "objectionable remarks on the issue of reservation."
- In 2017, Rajya Sabha MPs moved a motion to initiate impeachment proceedings against C.V. Nagarjuna Reddy J of the High Court for Andhra Pradesh and Telangana.
- In March 2018, opposition parties signed a draft proposal for moving an impeachment motion against Dipak Misra CJI.

Slide 8 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- The jurisdiction of the Supreme Court under the constitution is vast. It is the apex court of appeal in respect of all the matters. The apex court is conferred with the following powers Power to Enforce Fundamental Rights (Art.32):
- (2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part

Slide 9 · Constitutional Law, Cyber Law and Professional Ethics

- JURISDICTION, POWERS AND FUNCTIONS OF THE SUPREME COURT
- (3) Without prejudice to the powers conferred on the Supreme Court by clause (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).
- 4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution.

Slide 10 · Constitutional Law, Cyber Law and Professional Ethics

- Article 129: Supreme Court to be Court of Record : - Power to punish for contempt of itself.
- 1) Power to determine its own jurisdiction and
- Article 32: Enforcement of Fundamental Rights:. Under article 32 every citizen has a right to move the Supreme Court for the enforcement of the Fundamental Rights.

Slide 11 · Constitutional Law, Cyber Law and Professional Ethics

- The Supreme Court has got original and exclusive jurisdiction in any dispute
- between the Government of India and any State or States on one side and one or more other States on the other, or
- Only if High court certifies that there is substantive question of law with respect to Constitution of India.

Slide 12 · Constitutional Law, Cyber Law and Professional Ethics

- Article 134: Appellate jurisdiction of Supreme Court in regard to criminal matters: If the High Court

- has on appeal reversed an order of acquittal of an accused person and sentenced him to death
- has withdrawn for trial before itself any case from any court subordinate to its authority and has in such trial convicted the accused person and sentenced him to death

Slide 13 · Constitutional Law, Cyber Law and Professional Ethics

- Article 136: Special leave to appeal by the Supreme Court: The Supreme Court - in its discretion grant special leave to appeal from any judgment, decree, determination, sentence or order in any matter passed by any court or tribunal in the territory of India.
- (a) discovery of new and important matter of evidence,
- Article 141. Law declared by the Supreme Court to be binding on all courts: The law declared by the Supreme Court shall be binding on all courts within the territory of India.

Slide 14 · Constitutional Law, Cyber Law and Professional Ethics

- Advisory jurisdiction Article 143 - Power of President to consult Supreme Court
- If at any time it appears to the President that a question of law or fact has arisen, or is likely to arise, which is of such a nature and of such public importance that it is expedient to obtain the opinion of the Supreme Court upon it, he may refer the question to that Court for consideration and the Court may, after such hearing as it thinks fit, report to the President its opinion thereon.
- Such advisory opinion of the Supreme Court may be rendered at the instance of the president of India which may enable parliament to pass appropriate legislation or to introspect and effect suitable amendments to the existing law.

Slide 15 · State Judiciary

- Normally there is one High Court in every State but there can be only one High Court for two or more States as well according to the constitution.
- In every High Court, there is a Chief Justice and many other judges whose number is defined by the President of India.
- The Chief Justice of a High Court is appointed by the President with the consultation of the Chief Justice of the Supreme Court and the Governor of the State.

Slide 16 · State Judiciary

- Every High Court has the power to issue writs of habeus corpus, mandamus, prohibition, quo-warranto and certiorari for the enforcement of Fundamental Rights or for other purpose.
- The High Court is consulted by the Governor in the appointment, posting and promotion of District Judges. It is also consulted in the appointment of other members of the State Judicial Service.
- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.

Slide 17 · State Judiciary

- Holding a judicial office for not less than 10 years in a territory of India,
- An advocate of the High Court for at least 10 years in succession.
- The judges and the Chief Justice of the High Courts are appointed officially by the President.

Slide 18 · Constitutional Law, Cyber Law and Professional Ethics

- The Chief Justice - appointed by the President in consultation with Chief Justice of India and Governor.
- If he wants to resign, he can resign by writing to the president
- A High Court judge after retirement can practice either in Supreme or High Court in which he has not served.

Slide 19 · Constitutional Law, Cyber Law and Professional Ethics

- State Judiciary- Oath and Removal
- Every person appointed to be a Judge of a High Court shall, before he enters upon his office, make and subscribe before the Governor of the State, or some person appointed in that behalf by him, an oath or affirmation according to the form set out for the purpose in the Third Schedule.
- The judge is called upon to take oath according to Article 219 wherein he is required to bear true faith and allegiance to the Constitution. Also the judge is bound to perform the duties unbiased, in good will and without favouritism. The oath propagates that the judge shall uphold the Constitution and the laws.

Slide 20 · Constitutional Law, Cyber Law and Professional Ethics

- State Judiciary- Oath and Removal
- A motion to remove the judge of HC can be introduced in any house of parliament. It must be introduced by at least 100 members in Lok sabha or 50 members in Rajya Sabha whenever it is introduced.
- When the committee finds him guilty, then the motion has to be passed by both houses by a special majority. Then, the President gives his assent and Judge of HC is removed.

Slide 21 · Constitutional Law, Cyber Law and Professional Ethics

- The High Court is consulted by the Governor in the appointment, posting and promotion of District Judges. It is also consulted in the appointment of other members of the State Judicial Service.
- The control over district court and courts subordinate thereto including the posting and promotion of and the grant of leave to persons belonging to the judicial service of a State and holding any post inferior to the post of district judge is vested in the High Court.
- High Court has original and appellate jurisdiction in civil and criminal matters as conferred by the Codes of Civil and Criminal Procedure and the Letters of Patent.

Slide 22 · Constitutional Law, Cyber Law and Professional Ethics

- Article 226 : Power of High Courts to issue certain writs

- Article 226 also enables the High Courts to issue to any person or authority, any government, orders or writs in the nature of

Slide 23 · Constitutional Law, Cyber Law and Professional Ethics

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Slide 24 · EMERGENCY (ARTICLE 352 to 360)

- A novel feature of the Indian Constitution is the way in which the normal peace-time federalism, can be adopted to an emergency situation. The framers of the Constitution felt that, in an emergency, the Centre should have overriding powers to control and direct all aspects of administration and legislation throughout the country.
- The Indian Constitution envisages three types of emergencies
- Emergency arising from a threat to security of India or any part of its territory;

Slide 25 · EMERGENCY (ARTICLE 352 to 360)

- It occurs whenever there is imbalance within the Country, whether wholly or partly.
- Ultimate aim of government is to secure good life & safe life to its citizen .
- If we analyse the ex 1, 2 & 3"emergency in all the cases. The social equilibrium of the country was imbalanced and security of the citizen was on the threat.

Slide 26 · EMERGENCY (ARTICLE 352 to 360)

- National Emergency (352): If the President is satisfied that a grave emergency exists whereby the security of India or any part of its territory is threatened by war, external aggression or armed rebellion, he may proclaim a state of emergency under Article 352.
- If not, it shall be laid before both Houses of Parliament. If Parliament does not approve of it within one month, it will become invalid.
- So far, there have been three occasions when emergency of the first category was proclaimed by the President: 1962 (Chinese aggression), 1971 (Indo-Pakistan war before the formation of Bangladesh) and 1975 (internal emergency).

Slide 27 · EMERGENCY (ARTICLE 352 to 360)

- State Emergency (356): If the President is satisfied on receipt of a report from the Governor or otherwise that a situation has arisen in which the Government of a State cannot be carried on in accordance with the provisions of the Constitution, he can proclaim an emergency under Article 356 and 365.
- He may assume to himself all or any of the functions of the State or he may vest all or any of those functions in the Governor or any other executive authority; or
- he may make any other incidental or consequential provisions necessary to give effect to the objects of the Proclamation

Slide 28 · EMERGENCY (ARTICLE 352 to 360)

- The proclamation may be revoked subsequently; if not, it shall be laid before both Houses of Parliament, if Parliament does not approve of it within two months, it will become ineffective.
- During the period of emergency, - the State is empowered to suspend the Fundamental Rights guaranteed under Article 19 of the Indian Constitution.

Slide 29 · EMERGENCY (ARTICLE 352 to 360)

- Financial Emergency (ARTICLE 360): If the President is satisfied that a situation has arisen whereby the financial stability or credit of India or any part of it is threatened, he may declare a financial emergency under Article 360. The proclamation in this case also should be approved by Parliament as in the other two cases of emergency.
- When such a proclamation is in operation, the centre can give directions to any State to observe such canons of financial propriety as may be specified in the directions. It may also give such other directions as the President may deem necessary and adequate for the purpose. Any such directions may provide for the reduction of salaries and allowances of all or any class of persons serving in the State.

Slide 30 · EMERGENCY (ARTICLE 352)

- The 44th Amendment makes article 360 self-contained. It provides that the proclamation of financial emergency will cease to be in operation at the expiry of two months unless it has been approved by both Houses of Parliament. Such a proclamation may be revoked or varied by the President by a subsequent proclamation. But if the Lok Sabha is dissolved during the period of two months and resolution is approved by the Rajya Sabha, but not by the Lok Sabha the proclamation shall cease to operate at the expiry of 30 days from the date on which the new Lok Sabha sits unless before the expiry of 30 days a resolution approving proclamation is passed by the Lok Sabha.
- The duration of a proclamation of financial emergency will be in operation for two months and unless approved by President it shall cease to operate at the expiry of two months' period.

Slide 31 · Constitutional Law, Cyber Law and Professional Ethics

- AMENDMENT OF CONSTITUTION OF INDIA

Slide 32 · AMENDMENT OF CONSTITUTION

- The Indian Constitution came into force on 26th January 1950. The provisions of the constitution were so designed to meet the social, economic conditions prevailing at that time. To meet the changing conditions, there shall be an appropriate mechanism to alter the provisions of the constitution. Such mechanism is called the “Amendment of the Constitution”.
- Amendment of the Constitution is done under Article 368
- An amendment to the Constitution of India may be allowed by the introduction of a Bill for the purpose in either House of the Parliament (Lok Sabha or Rajya Sabha). The bill has to be passed in each house by a majority, which is more than 50% of the total membership of

that House and by a majority of not less than two-thirds of the members of the House present and voting.

Slide 33 · AMENDMENT OF CONSTITUTION

- After acquiring the majority, the Bill is presented to the President who will then give his assent to the Bill.
- In the case of amendment of provisions mentioned in Article 368, It needs to be ratified by not less than half of the states. Ratification should be done by a resolution passed by the state legislature.
- Basic Structure: The Basic Structure Doctrine states there are certain fundamental structures and founding principles of the constitution which make the backbone of the constitution. In simple terms, they are ideologies of the constitution which are essential for the survival of the constitution

Slide 34 · AMENDMENT OF CONSTITUTION

- Shankari Prasad v. Union of India (AIR 1951 SC 455) was the first time when the question of whether Fundamental Rights enshrined under Part III of the Constitution of India, can be amended under Article 368. The Five Judge Bench had stated, Article 368 provides for general and strict power to the Parliament of India to amend the Constitution.

Slide 35 · AMENDMENT OF CONSTITUTION

- Golaknath v. State of Punjab (1967 AIR 1643) was the case where three amendments, namely, the first, fourth, and seventeenth amendments, were challenged. The bench had eleven judges out of which the majority six-judge bench held that Part 3 of the Constitution (Fundamental Rights) could not be amended by the Parliament of India.
- Keshvananda Bharati v. Union of India (1973) 4 SCC 225) was a landmark case where for the first time, the Supreme Court brought in the doctrine of Basic Structure. The court overruled the judgment of the Golaknath case, The apex court held that article 368 of the Constitution does not empower the Parliament to change, damage, or alter the basic structure of the Constitution of India. The Preamble is actually the basic structure of the Constitution of India.

Slide 36 · AMENDMENT OF CONSTITUTION

- 42nd Amendment to the Constitution of India added the words “secular” and “socialist” to the Constitution of India and added clause 4 and 5 to Article 368. This amendment recognized the ultimate power of the Parliament in amending the Constitution of India even after the Supreme Court judgments of Keshvananda Bharati and Raj Narayan.

Slide 37 · Recent Trends and Constitutional Development

- Recent trends in India's constitutional development show the basic structure doctrine is increasingly important for protecting core constitutional principles from amendment.
- The Supreme Court, establishing this doctrine in the Kesavanada Bharati (1973), acts to safeguard foundational aspects like Constitutional Supremacy, rule of law, judicial review and

Secularism though the exact boundaries remain subject to judicial interpretation and debate. This ongoing evolution highlights the tension between adapting to societal changes and preserving the Indian Constitution's enduring integrity.

Slide 38 · Recent Trends and Constitutional Development

- The doctrine acts as a legal shield, preventing Parliament from altering the Constitution's fundamental features.
- The Supreme Court can review and strike down constitutional amendments that violate the Constitution's basic structure.
- Commonly accepted elements of the basic structure include constitutional supremacy, rule of law, judicial review, separation of powers, federalism, secularism, and the protection of fundamental rights.

Slide 39 · Recent Trends and Constitutional Development

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A Symbol glossary

Symbol	Name	Meaning	Appears in

B Sources, coverage and gaps

Source	Path	Use
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Slide page text: The story of my experiments with truth by Mahatma Gandhi	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/001_The_story_of_my_experiments_with_truth_by_Mahatma_Gandhi__367ecdda5d6cafe0.slides.md	Complete extracted page text from the bucket's .slides.md sidecar.
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Alternate extracted slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/004_constitution__4b8bb05877f4e9e3.slides.txt	The bucket's alternate .slides.txt text sidecar; content differences are kept as separate page points.
Page-render source for constitution (converted PDF; original hash 14f5823380a9ca1664129c2e61c3a164d17bb8706ee4875f1a99ade8629135c4)	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/004_constitution__4b8bb05877f4e9e3.pptx	Page inventory and visual source for the rendered original deck; figure pages are derived from this local PDF. The original bucket path/hash are retained in datasets/content-index.json.
Slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/005_constitution__74619e64bba87098.slides.md	Complete extracted page text from the bucket's .slides.md sidecar.
Alternate extracted slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/005_constitution__74619e64bba87098.slides.txt	The bucket's alternate .slides.txt text sidecar; content differences are kept as separate page points.
Page-render source for constitution (converted PDF; original hash 8d37a8aab269e081c4396892156fb82009d3ca0775a1928cdea360666767161f)	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/005_constitution__74619e64bba87098.pptx	Page inventory and visual source for the rendered original deck; figure pages are derived from this local PDF. The original bucket path/hash are retained in datasets/content-index.json.

Source	Path	Use
Slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/005_constitution__b81b10c2f0cdc4f4.slides.md	Complete extracted page text from the bucket's .slides.md sidecar.
Alternate extracted slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/005_constitution__b81b10c2f0cdc4f4.slides.txt	The bucket's alternate .slides.txt text sidecar; content differences are kept as separate page points.
Page-render source for constitution (converted PDF; original hash 8d37a8aab269e081c4396892156fb82009d3ca0775a1928cdea360666767161f)	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/005_constitution__b81b10c2f0cdc4f4.pptx	Page inventory and visual source for the rendered original deck; figure pages are derived from this local PDF. The original bucket path/hash are retained in datasets/content-index.json.
Slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/006_constitution__944de4ce9afbfb4b.slides.md	Complete extracted page text from the bucket's .slides.md sidecar.
Alternate extracted slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/006_constitution__944de4ce9afbfb4b.slides.txt	The bucket's alternate .slides.txt text sidecar; content differences are kept as separate page points.
Page-render source for constitution (converted PDF; original hash 8d37a8aab269e081c4396892156fb82009d3ca0775a1928cdea360666767161f)	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/006_constitution__944de4ce9afbfb4b.pptx	Page inventory and visual source for the rendered original deck; figure pages are derived from this local PDF. The original bucket path/hash are retained in datasets/content-index.json.

Source	Path	Use
Slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/007_constitution__9f948e1678980d67.slides.md	Complete extracted page text from the bucket's .slides.md sidecar.
Alternate extracted slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/007_constitution__9f948e1678980d67.slides.txt	The bucket's alternate .slides.txt text sidecar; content differences are kept as separate page points.
Page-render source for constitution (converted PDF; original hash 8d37a8aab269e081c4396892156fb82009d3ca0775a1928cdea360666767161f)	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/007_constitution__9f948e1678980d67.pptx	Page inventory and visual source for the rendered original deck; figure pages are derived from this local PDF. The original bucket path/hash are retained in datasets/content-index.json.
Slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/010_constitution__0671c68d64e7ae36.slides.md	Complete extracted page text from the bucket's .slides.md sidecar.
Alternate extracted slide page text: constitution	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/010_constitution__0671c68d64e7ae36.slides.txt	The bucket's alternate .slides.txt text sidecar; content differences are kept as separate page points.
Page-render source for constitution (converted PDF; original hash 8d37a8aab269e081c4396892156fb82009d3ca0775a1928cdea360666767161f)	https://huggingface.co/buckets/alvin3y10/data/tree/pesuc/PESU_Materials/Sem-1/UC26CE121A_CONSTITUTIONAL_LAW_CYBER_LAW_IP_LAW_AND_PROFESSIONAL_ETHICS/Unit_02/Slides/010_constitution__0671c68d64e7ae36.pptx	Page inventory and visual source for the rendered original deck; figure pages are derived from this local PDF. The original bucket path/hash are retained in datasets/content-index.json.

Historical question-source excerpts are shown only when a page has a strong text-based unit match. They are source references, not new solutions or exam predictions.

Known gaps, conflicts and corrections

1. No historical archive question page met the unit-match candidate threshold; all subject-level and ambiguous pages remain in datasets/question-archive.json.
2. This is a visibly labelled source-preservation draft. Human page-level semantic and visual review is not complete; no unsupported subject summary or formula correction is claimed.
3. The 19.26 GiB MP4 files remain hosted on Hugging Face; the full video path/hash and transcript coverage are indexed. The full audio/video was not watched end-to-end.
4. Formula candidates are machine-extracted text with source locators; use the adjacent original slide page and the formula index before treating a candidate as an authoritative equation.
5. The study PDF contains edited, topic-organized lecture notes and textual slide-page takeaways. Full-page slide images remain in the source/visual index datasets, not embedded as the lesson. Human content, ASR, formula, and page-level visual review remains pending.

Coverage

Evidence is summarized by source to keep the reading copy legible. Full source-unit IDs, locators and decisions remain in pack.json.

Source	Unit counts	Example decisions
SRC00001	1 covered · 0 excluded · 0 gaps	catalogue: Unit title and index copied from the official units.json catalogue; human content review is pending.
SRC00002	25 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00004	25 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...

Source	Unit counts	Example decisions
SRC00003	25 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00005	74 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00007	74 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00006	74 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...

Source	Unit counts	Example decisions
SRC00008	34 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00010	34 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00009	34 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00011	74 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00013	74 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...

Source	Unit counts	Example decisions
SRC00012	74 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00014	74 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00016	74 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00015	74 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...

Source	Unit counts	Example decisions
SRC00017	74 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00019	74 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00018	74 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00020	42 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00022	42 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...

Source	Unit counts	Example decisions
SRC00021	42 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00023	42 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00025	42 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00024	42 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...

Source	Unit counts	Example decisions
SRC00026	42 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00028	42 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00027	42 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00029	42 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00031	42 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...

Source	Unit counts	Example decisions
SRC00030	42 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...
SRC00032	42 covered · 0 excluded · 0 gaps	p1: Extracted slide page 1 from... p2: Extracted slide page 2 from... p3: Extracted slide page 3 from...
SRC00034	42 covered · 0 excluded · 0 gaps	p1: Original slide page 1 rendered from... p2: Original slide page 2 rendered from... p3: Original slide page 3 rendered from...
SRC00033	42 covered · 0 excluded · 0 gaps	p1: Alternate extracted slide text page 1; normalized text matches the .slides.md page. Human... p2: Alternate extracted slide text page 2; normalized text matches the .slides.md page. Human... p3: Alternate extracted slide text page 3; normalized text matches the .slides.md page. Human...

C Revision and retrieval practice